

INDUSTRIAL ALL RISK INSURANCE / ASURANSI SEMUA RISIKO HARTA BENDA**POLICY NO. / NO.POLIS 12.400.0020.12659****RENEWAL KE / RENEWAL KE1****PT. BANK BTPN TBK QQ PT. BANK BTPN. TBK QQ PT. INDOKOM SAMUDRA
PERSADA**

Whereas the insured named in the Schedule(s) hereto has made to the

Bahwa Tertanggung yang disebut dalam ikhtisar ini telah mengajukan kepada

PT. ASURANSI SINAR MAS

(hereinafter called "the insurers") a written proposal by completing the Questionnaire's which together with any otehr statement made in writing by the Insured for the purpose of this policy is deemed and to be incorporated herein,

(yang selanjutnya disebut "Penanggung") suatu permohonan tertulis dengan melengkapi kuesioner bersama dengan pernyataan lain yang dibuat secara tertulis oleh Tertanggung yang untuk kepentingan polis ini dianggap menjadi kesatuan daripadanya,

now this Policy of Insurance witnesseth that subject to the Insured having paid to the Insured the premium mentioned in the Schedule's and subject to the terms, exclusions, previsions and conditions contained herein or endorsed hereon the Insurers will Indemnify the Insured in the manner and to the extent herein after provided.

maka polis asuransi ini menyatakan bahwa dengan syarat Tertanggung telah membayar premi kepada Penanggung sebagaimana disebut dalam Ikhtisar dan tunduk pada syarat, pengecualian, ketentuan dan kondisi yang terkandung di dalamnya atau diendors padanya Penanggung akan memberi ganti rugi kepada Tertanggung sesuai dengan cara dan lingkup sebagaimana ditetapkan dalam polis ini.

Surabaya, 30 Agustus 2024
PT. ASURANSI SINAR MAS

**Digital Sign**

Authorized Signature
yang beri kuasa

SCHEDULE / IKHTISAR PERTANGGUNGAN

Type / Tipe	: INDUSTRIAL ALL RISK
Policy Number / Nomor Polis	: 12.400.0020.12659
Wording	: Munich-Re Standard Wording (Amended) Extended with Riots, Strikes, Malicious Damage + Civil Commotion 4.1B Endorsement / AAUI 2007
The Insured / Tertanggung	: PT. BANK BTPN TBK QQ PT. BANK BTPN. TBK QQ PT. INDOKOM SAMUDRA PERSADA AND/OR SUBSIDIARY/IES AND/OR ASSOCIATED COMPANIES AND/OR AFFILIATED COMPANIES INCLUDING THOSE ACQUIRED OR INCORPORATED DURING THE PERIOD OF INSURANCE FOR THEIR RESPECTIVE RIGHTS AND INTERESTS.
Address of Insured / Alamat Tertanggung	: JL. KEMANG RAYA, DESA SUKANEKARA (SHM 112, 151, 01867, 01868), KEL. SUKANEKARA, KEC. TANJUNG BINTANG, KOTA LAMPUNG SELATAN
Period of Insurance / Periode Pertanggungan	: 22 Agustus 2024 until 22 Agustus 2025 (365 hari)
Interest Insured/ Uraian Pertanggungan	Both dates at 12 o'clock noon local time at the location of the insured object : Real and Personal Property of every kind and description in or about the premises including but not limited to material on the ground and all structural appurtenances, foundation, fixtures, fittings attached and belonging thereto and external walls, gates, fences, soft furnishing, fixtures, fittings of every description, stock of every description related to the Insured's trade of business including raw material, work in progress and finished goods (including improvements and betterment) the property of the Insured or for which the Insured is legally liable including such property in which the Insured may acquire an interest during the Period of Insurance including incidental in the course of construction installation alteration refurbishment extension dismantling and/or assembly and/or real and personal property of others in the Insured's care custody or control and including property in the care custody or control of any third party and or whilst in transit and/or storage including money all as more fully described in the Policy (hereinafter called "the Property Insured").
Condition / Kondisi	:
Section / Bagian	: I - On Material Damage (Kerusakan Material)
Object / Obyek Pertanggungan	: I - Cold stores and ice factories
Address of Risk / Alamat Risiko	: JL. KEMANG RAYA, DESA SUKANEKARA (SHM 112, 151, 01867, 01868), KEL. SUKANEKARA, KEC. TANJUNG BINTANG, KOTA LAMPUNG SELATAN
Occupancy / Okupasi	: 2771 / 29371 / Cold stores and ice factories and/or sales activities and/or operation activities and/or others related to the insured business.
Sum Insured / Jumlah Pertanggungan	: BUILDING Rp 52.027.000.000,00
	MACHINERY Rp 29.845.900.000,00
	CONTENT Rp 3.378.200.000,00
	Total TSI Rp 85.251.100.000,00
Section / Bagian	: I - On Material Damage (Kerusakan Material)
Object / Obyek Pertanggungan	: 2 - Other farms
Address of Risk / Alamat Risiko	: TAMBAK UDANG GEBANG, DESA GEBANG, KEL. GEBANG, KEC. PADANG CERMIN, KAB. PESAWARAN, PROP LAMPUNG
Occupancy / Okupasi	: 2735 / Other farms and/or sales activities and/or operation activities and/or others related to the insured business.
Sum Insured / Jumlah Pertanggungan	: BUILDING Rp 635.000.000,00
	MACHINERY Rp 1.484.900.000,00

	CONTENT	Rp	3.819.000.000,00
	Total TSI	Rp	5.938.900.000,00
Section / Bagian	: I - On Material Damage (Kerusakan Material)		
Object / Obyek Pertanggungan	: 3 - Other farms		
Address of Risk / Alamat Risiko	: TAMBAK UDANG SERIBU, DESA GEBANG, KEL. GEBANG, KEC. PADANG CERMIN, KAB. PESAWARAN, PROP. LAMPUNG		
Occupancy / Okupasi	: 2735 / Other farms and/or sales activities and/or operation activities and/or others related to the insured business.		
Sum Insured / Jumlah Pertanggungan	: BUILDING	Rp	2.981.000.000,00
	MACHINERY	Rp	12.069.300.000,00
	CONTENT	Rp	24.360.000.000,00
	Total TSI	Rp	39.410.300.000,00
Section / Bagian	: I - On Material Damage (Kerusakan Material)		
Object / Obyek Pertanggungan	: 4 - Private Warehouses, dengan syarat sebagai berikut : 1. Gudang yang disewa oleh tertanggung secara langsung dari pemilik gudang atau pemilik bangunan/tempat penimbunan 2. Gudang yang dimiliki oleh tertanggung atau disewa oleh tertanggung tersebut pada no. 1 diatas yang secara khusus dipergunakan untuk menimbun barang-barang yang seluruhnya menjadi milik/kepentingan tertanggung yang bersangkutan dan sama sekali tidak terdapat barangbarang milik/kepentingan pihak lain, kecuali itu telah menjadi milik/ kepentingan pembelinya, yang (karena sesuatu hal yang dapat dibenarkan/lazim terjadi dalam transaksi jual beli) belum diambil oleh pembeli yang bersangkutan dan masih berada dalam gudang tersebut 3. Pengelolaan isi gudang tersebut pada no. 2 diatas dilaksanakan oleh dan menjadi tanggung jawab sepenuhnya dari tertanggung		
Address of Risk / Alamat Risiko	: JL. KEMANG RAYA, DESA SUKANEGERA (SHM 112, 151, 01867, 01868), KEL. SUKANEGERA, KEC. TANJUNG BINTANG, KOTA LAMPUNG SELATAN		
Occupancy / Okupasi	: 29371 / Private Warehouses, dengan syarat sebagai berikut : 1. Gudang yang disewa oleh tertanggung secara langsung dari pemilik gudang atau pemilik bangunan/tempat penimbunan 2. Gudang yang dimiliki oleh tertanggung atau disewa oleh tertanggung tersebut pada no. 1 diatas yang secara khusus dipergunakan untuk menimbun barang-barang yang seluruhnya menjadi milik/kepentingan tertanggung yang bersangkutan dan sama sekali tidak terdapat barangbarang milik/kepentingan pihak lain, kecuali itu telah menjadi milik/ kepentingan pembelinya, yang (karena sesuatu hal yang dapat dibenarkan/lazim terjadi dalam transaksi jual beli) belum diambil oleh pembeli yang bersangkutan dan masih berada dalam gudang tersebut 3. Pengelolaan isi gudang tersebut pada no. 2 diatas dilaksanakan oleh dan menjadi tanggung jawab sepenuhnya dari tertanggung and/or sales activities and/or operation activities and/or others related to the insured business.		
Sum Insured / Jumlah Pertanggungan	: STOCK	Rp	50.000.000.000,00
	Total TSI	Rp	50.000.000.000,00
Deductible / Risiko Sendiri	: ANY ONE LOSS OR SERIES OF LOSSES ARISING OUT OF ANY ONE EVENT : - FIRE, LIGHTNING, EXPLOSION, IMPACT OF FALLING AIRCRAFT AND SMOKE : A. NIL B. 5% OF CLAIM OR 0.1% OF TSI (WHICHEVER IS HIGHER) - RIOTS, STRIKES, MALICIOUS DAMAGE AND CIVIL COMMOTION : 5% OF CLAIM, MINIMUM IDR 5,000,000.00 - TYPHOON, STORM, FLOOD, WATER DAMAGE, LANDSLIDE, LANDSLIP & SUBSIDENCE : 10% OF CLAIM - OTHERS : IDR 1,000,000.00 - IMPACT OF VEHICLE : NIL		
Clauses / Klausul	: 1. ALTERATIONS CLAUSE (60 days) 2. ALTERATION AND REPAIRS CLAUSE 3. ALL OTHER CONTENTS CLAUSE (Limit IDR 100,000,000.00 / item and in aggregate)		

4. APPRAISEMENT CLAUSE (15% of Total Sum Insured)
5. AVERAGE RELIEF CLAUSE (85%)
6. BREACH OF WARRANTY CLAUSE
7. BROAD PAIR AND SET CLAUSE
8. CAPITAL ADDITIONS CLAUSE (10% of Total Sum Insured)
9. CIVIL AUTHORITIES CLAUSE
10. CLAIM SETTLEMENT CLAUSE (30 days)
11. COMPUTER RECORD CLAUSE
12. COST OF RE-ERECTION CLAUSE
13. DESIGNATION CLAUSE
14. DEFUNCT SPARE CLAUSE
15. DETERIORATION OF STOCK CLAUSE
16. DISPUTE CLAUSE
17. EARTHQUAKE EXCLUSION CLAUSE
18. ESCALATION CLAUSE (15%)
19. EXPEDITING EXPENSES CLAUSE (10% of claim)
20. FIRE BRIGADE CHARGES CLAUSE (Reasonable Cost)
21. FIRE EXTINGUISHING COST CLAUSE (Reasonable Cost)
22. GENERAL INTEREST CLAUSE
23. IMPACT BY OWN VEHICLE CLAUSE
24. INTERNAL REMOVAL CLAUSE
25. INTERPRETATION CLAUSE
26. LEASED PROPERTY CLAUSE (if applicable)
27. LESSOR'S INTEREST CLAUSE (if applicable)
28. LOADING AND UNLOADING CLAUSE
29. LOSS OF DAMAGED GOODS CLAUSE
30. LANDSCAPE CLAUSE
31. LANDSLIDE, LANDSLIP AND SUBSIDENCE CLAUSE
It is hereby noted and agreed that, this policy shall also cover the peril of subsidence, landslip or landslide.
32. LOCK AND KEYS CLAUSE
33. MISDESCRIPTION CLAUSE
34. METERED GAS EXTENSION
35. MINOR ALTERATIONS & REPAIRS CLAUSE
36. NOTIFICATION CLAUSE
37. NON-INVALIDATION CLAUSE
38. NEW LOCATION AND/OR NEW EQUIPMENT CLAUSE
39. OUTBUILDING CLAUSE
40. ONSITE STORAGE CLAUSE
41. OUTSIDE PREMISES STORAGE CLAUSE
42. PREMISES CLAUSE
43. PREVENTIVE MEASURE CLAUSE (Limit IDR 250,000,000.00)
44. PRORATE RETURN PREMIUM CLAUSE (subject to no claim)
45. PROPERTY UNDERGOING CONSTRUCTION AND ERECTION (Limit 10% of Total Sum Insured, maximum IDR 10,000,000,000.00)
46. PUBLIC AUTHORITIES CLAUSE
47. REMOVAL OF DEBRIS CLAUSE (10% of Sum Insured)
48. REMOVAL PERMIT CLAUSE
49. RIOT, STRIKES, MALICIOUS DAMAGE PLUS CIVIL COMMOTION (RSMD CC) 4.1 B ENDORSEMENT / AAUI 2007
50. SELLING PRICE CLAUSE
51. ELECTRICAL SHORT CIRCUIT (Limit IDR 250,000,000.00 anyone loss and IDR 1,000,000,000.00 in aggregate, applicable to items other than Machineries)
52. STRUCTURAL ALTERATION CLAUSE
53. SPRINKLER LEAKAGE CLAUSE

54. STOCK DECLARATION CLAUSE (75%) - If Applicable
55. SUE AND LABOR CLAUSE
56. SERVICE CLAUSE
57. TEMPORARY REMOVAL CLAUSE
58. TENANTS PRIVILEGE GRANTED CLAUSE
59. TENANT IMPROVEMENT CLAUSE
60. UNDAMAGED STOCK CLAUSE
61. VEHICLE LOAD CLAUSE
62. WORKMEN'S CLAUSE
63. 72 HOURS CLAUSE (Including TSFWDLLS & RSMDC + CC 4.1B Endorsement/AAUI 2007)
64. BANKER'S CLAUSE (PT. Bank BTPN Tbk)
65. CANCELLATION CLAUSE (30 days)
66. COST OF RE-WRITING RECORDS AND CLAIM PREPARATION CLAUSE (2.5% of Total Sum Insured)
67. CURRENCY CLAUSE
68. ERROR AND OMISSION CLAUSE
69. LOSS NOTIFICATION CLAUSE (30 days)
70. NOMINATED ADJUSTER CLAUSE
71. NUCLEAR ENERGY RISKS EXCLUSION CLAUSE (REINSURANCE) (1994) NMA 1975(A) WORLDWIDE EXCLUDING USA & CANADA
72. PAYMENT ON ACCOUNT CLAUSE (25%)
73. PROFESSIONAL FEES CLAUSE (10% of Claim)
74. WAIVER OF SUBROGATION CLAUSE
75. WAIVER CLAUSE (article 1266 & 1267 Indonesian Civil Code)
76. CYBER RISK EXCLUSION CLAUSE (NMA 2915)
77. PROPERTY DAMAGE CLARIFICATION CLAUSE
78. TERRORISM EXCLUSION ENDORSEMENT - NMA 2920
79. EXTRA CONTRACTUAL OBLIGATIONS EXCLUSION CLAUSE
80. EDRC "A"
81. INDUSTRIES, SEEPAGE, POLLUTION AND CONTAMINATION EXCLUSION CLAUSE NMA 1685 (SUDDEN AND ACCIDENTAL)
82. SANCTION AND LIMITATION EXCLUSION CLAUSE
83. INFORMATION TECHNOLOGY HAZARDS CLARIFICATION CLAUSE NMA 2912 - 12/11/01
84. TRANSMISSION & DISTRIBUTION LINES EXCLUSION CLAUSE (APPLICABLE FOR SECTION 1 AND 2 ONLY)
85. WAR AND CIVIL WAR EXCLUSION CLAUSE NMA 464
86. KLAUSULA PENYESUAIAN (AAUI 2016)
87. LMA 5393 - COMMUNICABLE DISEASE ENDORSEMENT
88. REINSTATEMENT VALUE CLAUSE (EXCLUDING STOCK)
89. CYBER LOSS ABSOLUTE EXCLUSION CLAUSE IUA 09-081 for Non-marine Business
90. Cyber Loss Limited Exclusion LMA 5410
91. POLITICAL RISK EXCLUSION
92. ASBESTOS EXCLUSION
93. PROPERTY CYBER AND DATA EXCLUSION - LMA 5401
94. FORFEITURE OF RIGHTS TO INDEMNIFICATION CLAUSE
95. IT CLARIFICATION AGREEMENT
96. CO-INSURANCE CLAUSE

Coverage / Jaminan Object Item / Obyek	Adj	Sublimit	Loss Limit	Amount TSI/ Jumlah Pertanggungan	Rate/ Suku Premi	Tariff/ Tarif	Premium/ Premi
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SECTION I ON

1. Cold stores and ice
factories

<u>FLEXAS</u>	100%	100%	85.251.100.000,00		
* BUILDING	100%		52.027.000.000,00	1,1270000%	100,00%
* MACHINERY	100%		29.845.900.000,00	1,1270000%	100,00%
* CONTENT	100%		3.378.200.000,00	1,1270000%	100,00%
<u>4.1A CC</u>	100%	100%	85.251.100.000,00		
* BUILDING	100%		52.027.000.000,00	0,0000100%	100,00%
* MACHINERY	100%		29.845.900.000,00	0,0000100%	100,00%
* CONTENT	100%		3.378.200.000,00	0,0000100%	100,00%
<u>4.3</u>	100%	100%	85.251.100.000,00		
* BUILDING	100%		52.027.000.000,00	0,4500000%	100,00%
* MACHINERY	100%		29.845.900.000,00	0,4500000%	100,00%
* CONTENT	100%		3.378.200.000,00	0,4500000%	100,00%
<u>OTHERS</u>	100%	100%	85.251.100.000,00		
* BUILDING	100%		52.027.000.000,00	0,0000100%	100,00%
* MACHINERY	100%		29.845.900.000,00	0,0000100%	100,00%
* CONTENT	100%		3.378.200.000,00	0,0000100%	100,00%

Total Premium Section / Total Premi Bagian I ON **Rp 134.442.689,72**

SECTION I ON

2. Other farms

<u>FLEXAS</u>	100%	100%	5.938.900.000,00		
* BUILDING	100%		635.000.000,00	0,9370000%	100,00%
* MACHINERY	100%		1.484.900.000,00	0,9370000%	100,00%
* CONTENT	100%		3.819.000.000,00	0,9370000%	100,00%
<u>4.1A CC</u>	100%	100%	5.938.900.000,00		
* BUILDING	100%		635.000.000,00	0,0000100%	100,00%
* MACHINERY	100%		1.484.900.000,00	0,0000100%	100,00%
* CONTENT	100%		3.819.000.000,00	0,0000100%	100,00%
<u>4.3</u>	100%	100%	5.938.900.000,00		
* BUILDING	100%		635.000.000,00	0,4500000%	100,00%
* MACHINERY	100%		1.484.900.000,00	0,4500000%	100,00%
* CONTENT	100%		3.819.000.000,00	0,4500000%	100,00%
<u>OTHERS</u>	100%	100%	5.938.900.000,00		
* BUILDING	100%		635.000.000,00	0,0000100%	100,00%
* MACHINERY	100%		1.484.900.000,00	0,0000100%	100,00%
* CONTENT	100%		3.819.000.000,00	0,0000100%	100,00%

Total Premium Section / Total Premi Bagian I ON **Rp 8.237.373,08**

SECTION I ON

3. Other farms

<u>FLEXAS</u>	100%	100%	39.410.300.000,00		
* BUILDING	100%		2.981.000.000,00	0,9370000%	100,00%
* MACHINERY	100%		12.069.300.000,00	0,9370000%	100,00%
* CONTENT	100%		24.360.000.000,00	0,9370000%	100,00%
<u>4.1A CC</u>	100%	100%	39.410.300.000,00		
* BUILDING	100%		2.981.000.000,00	0,0000100%	100,00%
* MACHINERY	100%		12.069.300.000,00	0,0000100%	100,00%
* CONTENT	100%		24.360.000.000,00	0,0000100%	100,00%
<u>4.3</u>	100%	100%	39.410.300.000,00		
* BUILDING	100%		2.981.000.000,00	0,4500000%	100,00%



* MACHINERY	100%		12.069.300.000,00	0,4500000% 100,00%	Rp	5.431.185,00
* CONTENT	100%		24.360.000.000,00	0,4500000% 100,00%	Rp	10.962.000,00
<u>OTHERS</u>	100%	100%	39.410.300.000,00			
* BUILDING	100%		2.981.000.000,00	0,0000100% 100,00%	Rp	29,81
* MACHINERY	100%		12.069.300.000,00	0,0000100% 100,00%	Rp	120,69
* CONTENT	100%		24.360.000.000,00	0,0000100% 100,00%	Rp	243,60

Total Premium Section / Total Premi Bagian I ON
SECTION I ON

Rp 54.662.874,31

4. Private Warehouses,
dengan syarat sebagai
berikut : 1. Gudang yang
disewa oleh tertanggung
secara langsung dari
pemilik gudang atau
pemilik bangunan/tempat
penimbunan 2. Gudang
yang dimiliki oleh
tertanggung atau disewa
oleh tertanggung tersebut
pada no. 1 diatas yang
secara khusus
dipergunakan untuk
menimbun barang-barang
yang seluruhnya menjadi
milik/kepentingan
tertanggung yang
bersangkutan dan sama
sekali tidak terdapat
barangbarang
milik/kepentingan pihak
lain, kecuali itu telah
menjadi milik/
kepentingan pembelinya,
yang (karena sesuatu hal
yang dapat
dibenarkan/lazim terjadi
dalam transaksi jual beli)
belum diambil oleh
pembeli yang
bersangkutan dan masih
berada dalam gudang
tersebut 3. Pengelolaan isi
gudang tersebut pada no.
2 diatas dilaksanakan oleh
dan menjadi tanggung
jawab sepenuhnya dari
tertanggung

<u>FLEXAS</u>	100%	100%	50.000.000.000,00			
* STOCK	100%		50.000.000.000,00	1,1270000% 100,00%	Rp	56.350.000,00
<u>4.1A CC</u>	100%	100%	50.000.000.000,00			
* STOCK	100%		50.000.000.000,00	0,0000100% 100,00%	Rp	500,00
<u>4.3</u>	100%	100%	50.000.000.000,00			
* STOCK	100%		50.000.000.000,00	0,4500000% 100,00%	Rp	22.500.000,00
<u>OTHERS</u>	100%	100%	50.000.000.000,00			
* STOCK	100%		50.000.000.000,00	0,0000100% 100,00%	Rp	500,00

Total Premium Section / Total Premi Bagian I ON

Rp 78.851.000,00

Total Premium/ Total Premi	Rp	276.193.937,11
Total Discount / Total Diskon	Rp	27.895.587,648

Administration Cost / Biaya Administrasi	Rp	60.000,00
Nett Total Premium / Net Total Premi	Rp	248,358,349.46

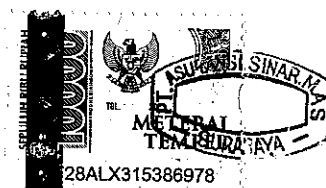
Tertanggung menyetujui dan bersedia dihubungi oleh PT. ASURANSI SINAR MAS dan rekanannya melalui sarana komunikasi pribadi (telepon, short message system, email dan lain-lain)

THE INVOICE (ORIGINAL COPY) IS EVIDENCE OF THE PREMIUM PAYMENT / BUKTI PEMBAYARAN PREMI YANG SAH ADALAH KWITANSI ORIGINAL

Accumulation Code / Kode Akumulasi: A100063536101003520939923
 10000000000000579920 10000000000000510734 O100063536101003520939924
 A100063545101003520939925 R100063545101003520937832
 F100063545101003520937833 O100063545101003520939926
 A100063545101003520939925 R100063545101003520937832
 F100063545101003520937833 O100063545101003520939926
 A100063536101003520939923 10000000000000579920 10000000000000510734
 O100063536101003520939924

Note : SUBJECT TO NO CLAIM UP TO 22 AUGUST, 2024
 ASM COMPULSORY CLAUSES MUST BE ATTACHED

Surabaya, 30 Agustus 2024
 PT. ASURANSI SINAR MAS



101526690939
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INDUSTRIAL ALL RISKS POLICY	POLIS SEMUA RISIKO HARTA BENDA
Whereas the Insured named in the Schedule hereto has made to the PT. ASURANSI SINAR MAS (hereinafter called "the Insurers") a written proposal by completing the Questionnaire(s) which together with any other statements made in writing by the Insured for the purpose of this policy to be incorporated herein, now this policy of insurance witnesseth that subject to the Insured having paid to the Insurers the premium mentioned in the Schedule(s) and subject to the terms, exclusion, provisions and conditions contained herein or endorsed hereon the Insurers will indemnify the Insured in the manner and to the extent hereinafter provided. <u>General Exclusion applying to all Sections</u> The Insurers will not indemnify the Insured in respect of loss (incl. consequential loss) destruction damage or expense whatsoever directly or indirectly caused by or arising out of or aggravated by : Exclusion : - war, invasion, act of foreign enemy, hostilities or warlike operations (whether war be declared or not) or civil war ; riots, strikes, locked-out workers, malicious acts, looting, mutiny, civil commotion, military rising, insurrection, rebellion, revolution, military or usurped power confiscation, requisition or nationalization acts of terrorism. "Terrorism" means the use of violence for political ends and includes any use of violence for the purpose of putting the public in fear - ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel - the radioactive toxic explosive or other hazardous properties of any explosive nuclear assembly or nuclear component thereof - wilful act or wilful negligence of the Insured or of his representatives	Bahwa Tertanggung yang disebut dalam Ikhtisar ini telah mengajukan kepada PT. ASURANSI SINAR MAS (yang selanjutnya disebut "Penanggung") suatu permohonan tertulis dengan melengkapi Kuesioner bersama dengan pernyataan lain yang dibuat secara tertulis oleh Tertanggung yang untuk kepentingan polis ini dianggap menjadi kesatuan daripadanya, maka polis asuransi ini menyatakan bahwa dengan syarat Tertanggung telah membayar premi kepada Penanggung sebagaimana disebut dalam Ikhtisar dan tunduk pada syarat, pengecualian, ketentuan dan kondisi yang terkandung di dalamnya atau diendos padanya Penanggung akan memberi ganti rugi kepada Tertanggung sesuai dengan cara dan lingkup sebagaimana ditetapkan dalam polis ini. <u>Pengecualian Umum berlaku untuk semua Bagian</u> Penanggung tidak akan memberi ganti rugi kepada Tertanggung sehubungan dengan kerugian (termasuk kerugian lanjutan) kehancuran kerusakan atau biaya apapun juga langsung atau tidak langsung disebabkan oleh atau timbul dari atau yang diperburuk oleh: Pengecualian : - perang, invasi, tindakan musuh asing, permusuhan atau operasi menyerupai perang (baik perang dideklarasikan atau tidak) atau perang saudara ; kerusuhan, pemogokan, penghalangan pekerja, tindakan jahat, penjarahan, pembangkangan, huru-hara, pembangkit militer, pembangkit rakyat, pemberontakan revolusi, kekuatan militer atau pengambil-alihan kekuasaan militer, penyitaan, pengambil-alihan atau nasionalisasi, tindakan terrorism. "Terorisme" berarti penggunaan kekerasan untuk tujuan politik dan termasuk penggunaan kekerasan apapun dengan tujuan untuk membuat publik atau bagian dari publik dalam ketakutan - radiasi ionisasi atau kontaminasi oleh radioaktivitas dari bahan bakar nuklir atau limbah nuklir dari pembakaran bahan bakar nuklir - bahan peledak beracun radioaktif atau barang berbahaya lain dari bahan peledak nuklir rakitan atau komponen nuklirnya - tindakan sengaja atau kelalaian sengaja Tertanggung atau wakilnya

4 total or partial cessation of work In any action, suit or other proceeding where the Insurers allege that by reason of the provisions of Exclusion 1) and 2) above any loss destruction damage or expense is not covered by this insurance the burden of proving that such loss destruction damage or expense is covered shall be upon the Insured. General Condition applying to all Sections 1. Definition The Schedule(s) the Section(s) and the Endorsement(s) and Questionnaire(s) shall be deemed to be incorporated in and form part of this Policy and the expression "this Policy" wherever used in this contract shall be read as including the Schedule(s) the Section(s) and the Endorsement(s) and Questionnaire(s). Any word or expression to which a specific meaning has been attached in any part of a Section or of the Endorsement or Questionnaire shall bear such meaning wherever it may appear in such Section, Endorsement or Questionnaire. 2. Policy Voidable This policy shall be voidable in the event of misdescription, misrepresentation or nondisclosure in any material particular. 3. Alteration 3.1 Section I of this policy shall be avoided with respect to any of the Property Insured in regard to which there be any alteration after the commencement of this insurance 3.1.1 by removal or 3.1.2 whereby the risk of loss destruction or 3.1.3 whereby the interest of the Insured ceases except by will or operation of law	4 penghentian pekerjaan total atau parsial Dalam setiap tindakan, gugatan atau proses hukum lain dimana Penanggung menyatakan bahwa berdasarkan ketentuan Pengecualian 1) dan 2) diatas suatu kerugian kehancuran kerusakan atau biaya tidak dijamin oleh asuransi ini kewajiban pembuktian bahwa kerugian kehancuran kerusakan tersebut dijamin berada pada Tertanggung. Kondisi Umum berlaku untuk semua Bagian 1. Definisi Ikhtisar Bagian dan Endosemen dan Kuesioner dianggap menjadi kesatuan pada dan bagian yang tidak terpisahkan dari Polis ini dan ungkapan "Polis ini" dimanapun digunakan di dalam kontrak ini harus dibaca sebagai termasuk Ikhtisar Bagian dan Endosemen dan Kuesioner. Setiap kata atau ungkapan yang memiliki arti khusus yang terlekat di bagian manapun pada Bagian atau pada Endosemen atau Kuesioner mengandung arti yang sama dimanapun muncul pada Bagian, Endosemen atau Kuesioner tersebut. 2. Polis Dapat Tidak Berlaku Polis ini dapat menjadi tidak berlaku dalam hal salah deskripsi, salah penyajian atau tidak diungkapkannya setiap keterangan materiil. 3. Perubahan 3.1 Bagian I polis ini menjadi tidak berlaku berkenaan dengan Harta Benda yang Diasuransikan dalam hal mana terdapat suatu perubahan setelah berlakunya asuransi ini 3.1.1 karena pemindahan atau 3.1.2 dimana risiko kerugian kehancuran atau kerusakan meningkat atau 3.1.3 dimana kepentingan Tertanggung berakhir kecuali karena kehendak atau pelaksanaan hukum
unless admitted by the Insurer in writing. 3.2 Section II of this policy shall be avoided if after the commencement of this insurance 3.2.1. the Business be wound up or carried on by a liquidator or receiver or permanently discontinued or 3.2.2. the interest of the Insured ceases other than by death or 3.2.3. any alteration be made either in the Business or in the Premises or property therein whereby the risk of loss destruction or damage is increased unless admitted by the Insurer in writing.	kecuali diakui oleh Penanggung secara tertulis. 3.2 Bagian II Polis ini menjadi tidak berlaku jika setelah berlakunya asuransi ini 3.2.1. Usaha ditutup atau dijalankan oleh likuidator atau kurator atau dihentikan secara permanen atau 3.2.2. kepentingan Tertanggung berakhir selain karena kematian atau 3.2.3. suatu perubahan dibuat baik terhadap Usaha atau pada Lokasi atau harta benda di dalamnya dimana risiko terhadap kerugian kehancuran atau kerusakan meningkat kecuali diakui oleh Penanggung secara tertulis.

4. Warranties Every warranty to which this policy is or may be made subject shall from the time the warranty attaches apply and continue to be in force during the whole currency of this policy and non-compliance with any such warranty in so far as it increases the risk of any loss destruction or damage shall be a bar to any claim in respect of such loss destruction or damage. 5. Reasonable Precautions The Insured shall take all reasonable precautions to prevent loss destruction or damage, e.g. take at his own expense all reasonable precautions, comply with all reasonable recommendations of the Insurers to prevent loss destruction or damage, comply with statutory requirements and manufacturers' recommendations. 6. Reasonable Precautions Representatives of the Insurers shall at any reasonable time have the right to inspect and examine the risk and the Insured shall provide the representatives of the Insurers with all details and information necessary for the assessment of the risk. Said inspection/examination shall not impose any liability on the Insurers and shall not be taken as guarantee for the Insured of the safety standards of his operations. 7. Claims Procedure 7.1. In the event of any occurrence which might give rise to a claim under this Policy, the Insured shall - immediately notify the Insurers by telephone or telegram as well as in writing about the nature and extent of loss destruction or damage - take all steps within his power to minimize the extent of the loss destruction or damage - preserve the parts affected and make them available for inspection by a representative or surveyor of the Insurers - furnish all such information and documentary evidence as the Insurers may require - immediately inform the police authorities in case of loss or damage due to theft or burglary or malicious damage.	4. Janji Setiap janji terhadap mana polis ini disyaratkan atau mungkin disyaratkan sejak saat janji tersebut melekat akan berlaku dan terus berlaku selama berlakunya polis ini dan tidak dipenuhinya setiap janji tersebut sejauh meningkatkan risiko kerugian kehancuran atau kerusakan akan menjadi penghalang suatu klaim sehubungan dengan kerugian kehancuran atau kerusakan tersebut. 5. Pencegahan Yang Wajar Tertanggung harus melakukan segala tindakan pencegahan yang wajar untuk mencegah kerugian kehancuran atau kerusakan, misalnya atas biaya sendiri melakukan semua tindak pencegahan yang wajar, memenuhi semua rekomendasi yang wajar dari Penanggung untuk mencegah kerugian kehancuran atau kerusakan, mematuhi peraturan perundang-undangan dan rekomendasi pabrik. 6. Pencegahan Yang Wajar Wakil Penanggung pada tiap waktu yang wajar berhak menginspeksi dan mengkaji risiko dan Tertanggung harus memberikan kepada wakil Penanggung semua keterangan rinci dan informasi yang diperlukan untuk penilaian risiko. Inspeksi / pemeriksaan tersebut tidak membebankan tanggung jawab apapun kepada Penanggung dan tidak dianggap sebagai jaminan bagi Tertanggung atas standar keselamatan operasinya. 7. Prosedur Klaim 7.1. Dalam hal suatu kejadian yang dapat menimbulkan klaim berdasarkan Polis ini, Tertanggung harus - segera memberitahu Penanggung melalui telepon atau telegram dan juga secara tertulis mengenai sifat dan tingkat kerugian kehancuran atau kerusakan - melakukan semua langkah yang berada di dalam kekuasaannya untuk memperkecil tingkat kerugian kehancuran atau kerusakan - menjaga bagian yang terkena dampak dan membuatnya tersedia untuk diinspeksi oleh wakil atau surveyor Penanggung - menyerahkan semua informasi dan bukti dokumen yang diminta Penanggung - segera memberitahu polisi yang berwenang dalam hal kehilangan atau kerusakan karena pencurian atau pembongkaran atau kerusakan akibat perbuatan jahat.
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Upon notification being given to the Insurers under this condition, a representative of the Insurers shall have the opportunity of inspecting the loss destruction or damage before any repairs or alterations are effected. If a representative of the Insurers does not carry out the inspection within a period of time which could be considered as adequate under the circumstances the Insured is entitled to proceed with the repairs or replacement.

7.2. The Insured shall not be entitled to abandon any property to the Insurers whether taken possession of by the Insurers or not.

7.3. 7.3. No claim shall be payable under this policy unless the terms of this Condition have been complied with.

7.4. Fraud

If a claim is fraudulent in any respect or if fraudulent means are used by the Insured or by anyone acting on his behalf to obtain any benefit under this policy or if any loss or destruction of or damage to the Property Insured or to property used by the Insured at the Premises for the purpose of the Business is caused by the wilful act or with the connivance of the Insured all benefit under this policy shall be forfeited.

8. Indemnification

8.1 The Insurers shall indemnify adjusted losses within 30 (thirty) days after receipt of loss adjuster's final report or equivalent proof of loss

8.2 Liability having been admitted, payments on account not exceeding the minimum amount justified by the prevailing circumstances shall be effected

8.3 The Insurers shall be entitled to withhold indemnification

- if there are doubts regarding the Insured's right to receive the indemnity, pending receipt by the Insurers of the necessary proof

- if in connection with the claim an examination by the police or an inquiry under criminal law has been instituted against the Insured, pending completion of such examination or enquiry.

9. Interest Payments

The Insurers shall not be liable to pay interest other than interest for default.

Setelah pemberitahuan diberikan kepada Penanggung sesuai kondisi ini, wakil Penanggung mempunyai kesempatan untuk menginspeksi kerugian kehancuran atau kerusakan sebelum suatu perbaikan atau perubahan dilakukan. Jika wakil Penanggung tidak melakukan inspeksi dalam jangka waktu tertentu yang dapat dianggap cukup dalam situasi tersebut Tertanggung berhak melakukan perbaikan atau penggantian.

7.2. 7.2 Tertanggung tidak berhak mengabdikan harta benda kepada Penanggung baik yang diambil-alih oleh Penanggung atau tidak.

7.3. 7.3 Tidak ada klaim yang dapat dibayar berdasarkan polis ini kecuali syarat-syarat dari Kondisi ini telah dipenuhi.

7.4 Kecurangan

Jika suatu klaim curang dalam hal apapun atau jika cara curang digunakan oleh Tertanggung atau oleh orang yang bertindak atas namanya untuk memperoleh manfaat berdasarkan polis ini atau jika suatu kerugian atau kehancuran pada atau kerusakan atas Harta Benda yang diasuransikan atau atas harta benda yang digunakan oleh Tertanggung di Lokasi untuk kepentingan Usaha disebabkan oleh tindakan sengaja atau kerjasama dengan Tertanggung semua manfaat berdasarkan Polis ini menjadi hilang.

8. Pemberian Ganti Rugi

8.1 Penanggung akan memberi ganti rugi atas kerugian yang telah disetujui dalam waktu 30 (tiga puluh) hari setelah diterimanya laporan akhir dari penilai kerugian atau bukti kerugian yang setara

8.2 Tanggung jawab telah diakui, pembayaran pendahuluan yang tidak melebihi jumlah minimal sesuai dengan situasi yang ada dapat diberikan

8.3 Penanggung berhak menahan pemberian ganti rugi

- jika terdapat keraguan sehubungan dengan hak Tertanggung untuk menerima ganti rugi, menunggu penerimaan oleh Penanggung bukti yang diperlukan

- jika berkaitan dengan klaim suatu pemeriksaan oleh polisi atau penyelidikan berdasarkan hukum pidana telah dilakukan terhadap Tertanggung, menunggu penyelesaian pemeriksaan atau penyelidikan tersebut.

9. Pembayaran Bunga

Penanggung tidak bertanggung jawab membayar bunga selain bunga karena gagal bayar.

10. Arbitration

If any difference shall arise as to the amount to be paid under this Policy (liability being otherwise admitted) such difference shall be referred to the decision of an Arbitrator to be appointed in writing by the parties; if they cannot agree upon a single Arbitrator to the decision of two Arbitrators, one to be appointed in writing by each of the parties, within one calendar month after having been required in writing so to do by either of the parties, or, in case the Arbitrators do not agree, of an Umpire to be appointed in writing by the Arbitrators before entering upon the reference. The Umpire shall sit with the Arbitrators and preside at their meetings. The making of an award shall be a condition precedent to any right of action against the Insurers.

11. Subrogation

The Insured shall at the expense of the Insurers do and concur in doing and permit to be done all such acts and things as may be necessary or required by the Insurers in the interest of any rights or remedies, or of obtaining relief or indemnity from parties (other than those insured under this Policy) to which the Insurers shall be or would become entitled or subrogated upon their paying for or making good of any loss destruction damage or expense under this Policy, whether such acts and things shall be or become necessary or required before or after the Insured's indemnification by the Insurers.

12. Other Insurance

If at the time any claim arises under this Policy there is any other insurance covering the same loss destruction or damage the Insurers shall not be liable to pay or contribute more than their rateable proportion of any claim for such loss destruction or damage.

13. Period of Insurance

The period of insurance is one year. Inception and expiry shall both be 12 o'clock noon at the dates entered in the Schedule. The insurance is automatically renewed for a year, unless Insurer or Insured request in writing the termination at the expiry date, giving 30 days notice.

14. Average

The sums insured of each item under Section I and of Section II of this policy (other than those applying solely to fees, rent, removal of debris or private dwelling houses) are declared to be separately subject to Average.

10. Arbitrase

Jika suatu perbedaan timbul mengenai jumlah yang harus dibayar berdasarkan Polis ini (sebaliknya tanggung jawab telah diakui), perbedaan tersebut akan dirujuk pada keputusan seorang Arbiter yang ditunjuk secara tertulis oleh para pihak, jika mereka tidak dapat setuju atas Arbiter tunggal, pada keputusan dua Arbiter, satu ditunjuk secara tertulis oleh masing-masing pihak, dalam satu bulan kalender setelah diminta secara tertulis untuk melakukannya baik para pihak, atau, dalam hal para Arbiter tidak setuju, seorang Wasit yang ditunjuk secara tertulis oleh para Arbiter sebelum masuk ke perujukan. Wasit duduk bersama dengan para Arbiter dan memimpin rapat mereka. Keputusan yang dibuat menjadi suatu kondisi preseden terhadap segala hak untuk bertindak terhadap Penanggung.

11. Subrogasi

Tertanggung atas biaya Penanggung melakukan dan setuju melakukan dan mengizinkan dilakukannya semua tindakan dan hal-hal yang mungkin diperlukan atau diminta oleh Penanggung demi kepentingan atas segala hak atau pemulihan, atau untuk memperoleh keringanan atau ganti rugi dari pihak-pihak (selain dari mereka yang diasuransikan pada Polis ini) terhadap mana Penanggung berhak atau menjadi berhak atau memperoleh hak tuntutan setelah mengganti atau memperbaiki suatu kerugian kehancuran kerusakan atau biaya berdasarkan Polis ini, baik tindakan dan hal-hal tersebut perlu atau menjadi perlu atau diminta sebelum atau setelah pemberian ganti rugi Tertanggung oleh Penanggung.

12. Asuransi Lain

Jika pada saat timbulnya suatu klaim berdasarkan Polis ini terdapat asuransi lain yang menanggung kerugian kehancuran atau kerusakan yang sama Penanggung tidak bertanggung jawab membayar atau memberikan kontribusi lebih dari bagiannya secara proporsional dari klaim untuk kerugian kehancuran atau kerusakan tersebut.

13. Jangka Waktu Asuransi

Jangka waktu asuransi adalah satu tahun. Mulai dari berakhirnya adalah pada pukul 12 siang pada kedua tanggal yang tercantum dalam Ikhtisar. Asuransi ini secara otomatis diperpanjang untuk satu tahun, kecuali Penanggung atau Tertanggung meminta secara tertulis pengakhiran pada tanggal berakhirnya, dengan menyampaikan pemberitahuan dalam waktu 30 hari.

14. Pro-rata

Harga pertanggungan tiap butir pada Bagian I dan Bagian II polis ini (selain yang berlaku semata-mata untuk uang jasa, sewa, pemindahan puing atau rumah tinggal pribadi) dideklarasikan tunduk pada Pro-rata secara terpisah.

Section I:

If the Property Insured under any item shall at the commencement of any loss damage or destruction hereby insured against be collectively of greater value than the respective sum insured, then the Insured shall be considered as being his own insurer for the difference and shall bear a rateable share of the loss accordingly.

Section II:

The Insurance is limited to loss of Gross Profit due to (a) Reduction in Turnover and (b) Increase in Cost of Working and the amount payable as indemnity thereunder shall be :

- a) in respect of Reduction in Turnover : the sum produced by applying the Rate of Gross Profit to the amount by which the Turnover during the Indemnity

Period shall fall short of the Standard Turnover in consequence of loss destruction or damage

- b) in respect of Increase in Cost of Working: the additional expenditure necessarily and reasonably incurred for the sole purpose of avoiding or diminishing the Reduction in Turnover which but for that expenditure would have taken place during the Indemnity Period in consequence of the Incident, but not exceeding the sum produced by applying the Rate of Gross Profit to the amount of the reduction thereby avoided

less any sum saved during the Indemnity Period in respect of such of the charges and expenses of the Business payable out of Gross Profit as may cease or be reduced in consequence of loss destruction or damage

provided that if the sum insured by this item be less than the sum produced by applying the Rate of Gross Profit to the Annual Turnover (or to a proportionately increased multiple thereof where the Maximum Indemnity Period exceeds twelve months) the amount payable shall be proportionately reduced.

15. Deductibles

This policy does not cover the amounts of the deductibles stated in the Schedule in respect of each and every loss as ascertained after the application of all other terms and conditions of the policy including any condition of Average.

Warranted that the Insured shall not effect insurance in respect of the amounts of the deductibles stated in the Schedule.

16. Sum(s) Insured

The sum(s) insured shall not be reduced by any indemnity payments.

Bagian I:

Jika Harta Benda yang Diasuransikan pada suatu butir saat mulai terjadinya suatu kerugian kerusakan atau kehancuran yang diasuransikan secara kolektif nilainya lebih besar daripada harga pertanggungan butir tersebut, maka Tertanggung dianggap sebagai penanggungnya sendiri untuk selisihnya dan menanggung bagian sebanding dari kerugian tersebut.

Bagian II:

Asuransi ini terbatas pada hilangnya Laba Kotor karena (a) Penurunan Hasil Penjualan dan (b) Kenaikan Biaya Kerja dan jumlah yang dapat dibayarkan sebagai ganti rugi adalah:

- a) sehubungan dengan Penurunan Hasil Penjualan : jumlah yang diperoleh dengan perkalian Tingkat Laba Kotor terhadap suatu jumlah dimana Hasil Penjualan selama Jangka Waktu Ganti Rugi kurang dari Hasil Penjualan Standar sebagai akibat dari kerugian kehancuran atau kerusakan

- b) sehubungan dengan Kenaikan Biaya Kerja: pengeluaran tambahan yang perlu dan wajar yang timbul semata-mata untuk menghindari atau mengurangi Penurunan Hasil Penjualan yang mana pengeluaran tersebut seharusnya timbul selama Jangka Waktu Ganti Rugi sebagai akibat dari Insiden, tetapi tidak melebihi jumlah yang diperoleh dengan perkalian Tingkat Laba Kotor terhadap jumlah penurunan yang berhasil dihindari dikurangi dengan suatu jumlah yang dihemat selama Jangka Waktu Ganti Rugi sehubungan dengan biaya dan pengeluaran dari Usaha tersebut yang dapat dibayarkan dari Laba Kotor yang hilang atau berkurang sebagai akibat dari kerugian kehancuran atau kerusakan

dengan syarat bahwa jika harga pertanggungan butir ini kurang dari jumlah yang diperoleh dengan perkalian Tingkat Laba Kotor terhadap Hasil Penjualan Tahunan (atau kelipatan yang naik secara proporsional jika Jangka Waktu Ganti Rugi Maksimal melebihi dua belas bulan) jumlah yang dapat dibayarkan berkurang secara proporsional.

15. Risiko Sendiri

Polis ini tidak menjamin jumlah risiko sendiri yang tercantum dalam Ikhtisar sehubungan dengan masing-masing dan setiap kerugian sebagaimana yang ditentukan setelah diberlakukannya semua syarat dan kondisi lain pada polis termasuk kondisi Pro-rata.

Merupakan janji bahwa Tertanggung tidak mengasuransikan jumlah risiko sendiri yang tercantum dalam Ikhtisar.

16. Harga Pertanggungan

Harga pertanggungan tidak akan berkurang dengan suatu pembayaran ganti rugi.

Section I Material Damage

The Insurers hereby agree with the Insured that if at any time during the period of insurance the items or any part thereof entered in the Schedule and whilst at the premise(s) described in such Schedule shall suffer any unforeseen, sudden and accidental physical loss destruction or damage other than those specifically excluded in the General or Special Exclusions in a manner necessitating repair or replacement, the Insurers will indemnify the Insured in respect of such loss destruction or damage as hereinafter provided by payment in cash, replacement or repair (at the Insurers' option) up to an amount not exceeding in respect of each of the items at any location specified in the Schedule the sum set opposite thereto (sum insured) and not exceeding in any one event the limit of indemnity where applicable and not exceeding in all the total sum expressed in the Schedule as insured hereby.

Special Exclusions to Section I

1. The Insurers shall not be liable for loss destruction of or damage to
 - 1.1 property in the course of construction or erection
 - 1.2 property being worked upon and actually arising from the process of manufacture testing repairing cleaning restoring alteration renovation or servicing
 - 1.3 property in transit by road, rail, air or water
 - 1.4 licensed road vehicles, railway locomotives and rolling stock, watercraft, aircraft, spacecraft and the like
 - 1.5 jewellery, precious stones, precious metals, bullion, furs, curiosities, rare books or works of art
 - 1.6 standing timber, growing crops, animals, birds, fish
 - 1.7 land (including topsoil backfill drainage or culvert), driveways, pavements, roads, runways, railway lines, dams, reservoirs, surface water, underground water, canals, rigs, wells, pipelines, cables, tunnels, bridges, docks, piers, wharves, mining property underground, offshore property
 - 1.8 property in the possession of customers under Rental Agreements or Hire Purchase, Credit or other Suspensive Sale Agreements
 - 1.9 property which at the time of the happening of loss destruction or damage is insured by or would but for the existence of this policy be insured by any marine policy or policies.
2. The Insurer(s) shall not be liable for loss destruction of or damage to the property insured directly or indirectly caused by or arising out of or aggravated by :

Bagian I Kerusakan Material

Penanggung dengan ini setuju dengan Tertanggung bahwa jika setiap saat selama jangka waktu asuransi butir-butir atau bagian dari padanya yang tercantum dalam Ikhtisar dan selama berada pada lokasi yang tercantum dalam Ikhtisar tersebut menderita suatu kerugian kehancuran atau kerusakan fisik yang tidak terduga, tiba-tiba dan tidak disengaja selain dari hal-hal yang dikecualikan secara khusus dalam Pengecualian Umum atau Khusus dengan cara yang memerlukan perbaikan atau penggantian, Penanggung akan memberi ganti rugi kepada Tertanggung sehubungan dengan kerugian kehancuran atau kerusakan tersebut sebagaimana ditetapkan selanjutnya dengan pembayaran tunai, penggantian atau perbaikan (atas pilihan Penanggung) sampai dengan suatu jumlah yang tidak melebihi nilai masing-masing butir pada setiap lokasi yang tercantum dalam Ikhtisar suatu jumlah yang ditentukan di dalamnya (harga pertanggungan) dan tidak melebihi batas ganti rugi untuk setiap kejadian jika berlaku dan tidak melebihi secara keseluruhan jumlah yang tertera dalam Ikhtisar sebagai yang diasuransikan.

Pengecualian Khusus untuk Bagian I

1. Penanggung tidak bertanggung jawab atas kerugian kehancuran pada atau kerusakan atas
 - 1.1 harta benda yang sedang dalam konstruksi atau pemasangan
 - 1.2 harta benda yang sedang dalam proses pengerjaan dan sebenarnya timbul dari proses manufaktur pengujian perbaikan pembersihan pemulihan perubahan renovasi atau servis
 - 1.3 harta benda dalam pengangkutan melalui darat, rel, udara atau air
 - 1.4 kendaraan darat berjin, lokomotif dan gerbong barang kereta api, kendaraan air, pesawat terbang, pesawat ruang angkasa dan sejenisnya
 - 1.5 perhiasan, batu permata, logam mulia, emas lantakan, pakaian yang terbuat dari bulu binatang, barang antik, buku langka atau karya seni
 - 1.6 pohon kayu, tanaman panen, hewan, burung, ikan
 - 1.7 tanah (termasuk lapisan-atas urukan drainase atau gorong-gorong), jalan beraspal, jalan perkerasan, jalan, landas pacu, jalur-rel, bendungan, waduk, air permukaan, air bawah tanah, kanal, pengeboran, sumur, saluran pipa, saluran kabel, terowongan, jembatan, galangan, tempat labuh, dermaga, harta benda tambang bawah tanah, harta benda lepas pantai
 - 1.8 harta benda dalam penguasaan pelanggan berdasarkan Perjanjian Sewa atau Sewa Beli, Perjanjian Kredit atau Penjualan Tunda lainnya
 - 1.9 harta benda yang pada saat terjadinya kerugian kehancuran atau kerusakan diasuransikan pada atau seharusnya diasuransikan pada polis atau polis-polis asuransi laut dan bukannya pada keberadaan polis ini.
2. Penanggung tidak bertanggung jawab terhadap kerugian kehancuran pada atau kerusakan atas harta benda yang diasuransikan yang secara langsung atau tidak langsung disebabkan oleh atau timbul dari atau diperburuk oleh:

2.1 delay, loss of market or other consequential or indirect loss or damage of any kind or description whatsoever

2.2 dishonesty, fraudulent act, trick, device or other false pretence

2.3 disappearance, unexplained or inventory shortage

2.4 joint leakage, failure of welds, cracking, fracturing, collapse or overheating of boilers, economisers, superheaters, pressure vessels or any range of steam and feed piping in connection therewith, mechanical or electrical breakdown or derangement in respect of the particular machine apparatus or equipment in which such breakdown or derangement originates

2.5 all gradually operating causes, including but not limited to wear and tear, rust, corrosion, mildew, mould, fungus, wet or dry rot, gradual deterioration, latent defect, inherent vice, slowly developing deformation or distortion, insects larvae or vermin of any kind, microbes of any kind, unless sudden and unforeseen physical loss destruction or damage ensues, in which case Insurers' liability shall be limited to such ensuing loss damage or destruction.

2.6 pollution or contamination, unless caused by fire, lightning, explosion, aircraft or other aerial devices or articles dropped therefrom, riot, civil commotion, strikers, locked-out workers, persons taking part in labour disturbances, malicious persons (other than thieves), earthquake, storm, flood, escape of water from any tank apparatus or pipe or impact by any road vehicle or animal

2.7 enforcement of any ordinance or law regulating the construction, repair or demolition of any Property Insured hereunder except as provided for in the Public Authorities Memorandum incorporated in this Section

2.8 shrinkage, evaporation, loss of weight, change in flavour, colour, texture or finish, action of light

2.9 change in temperature or humidity, failure or inadequate operation of any airconditioning cooling or heating system due to operating error. The burden of proof that no operating error occurred, shall be upon the Insured

2.10 exposure to weather conditions where property is left in the open or not contained in fully enclosed buildings.

3. The Insurers shall not be liable for the costs

3.1 of rectifying defective materials, faulty workmanship or design

3.2 of normal upkeep, normal making good, maintenance

3.3 arising from false or unauthorised programming, punching, labelling or inserting, inadvertent cancelling of information or discarding of data media and from loss of information caused by magnetic fields.

2.1 keterlambatan, kehilangan pasar atau kerugian atau kerusakan lanjutan atau tidak langsung lainnya apapun jenis atau deskripsinya

2.2 ketidakjujuran, tindakan curang, tipu daya, muslihat atau kepalsuan lainnya

2.3 lenyap, kekurangan yang tidak dapat dijelaskan atau berkurangnya barang inventaris

2.4 kebocoran sambungan, kegagalan pengelasan, retak, patah, runtuh atau panas berlebihan pada ketel uap, economiser, superheater, bejana bertekanan atau macam-macam jaringan pipa uap dan jaringan pipa pengisi yang berkaitan dengannya, kegagalan atau kekacauan mekanik atau elektrik sehubungan dengan peralatan atau perlengkapan mesin tertentu di mana kegagalan atau kekacauan tersebut berasal

2.5 semua penyebab yang berlangsung secara berangsur-angsur, termasuk tetapi tidak terbatas pada aus, karat, korosi, lumut, lapuk, jamur, busuk basah atau kering, penurunan mutu yang terjadi secara berangsur-angsur, cacat laten, sifat barang, perubahan bentuk atau distorsi yang terjadi secara perlahan, serangga larva atau binatang kecil apapun jenisnya, mikroba apapun jenisnya, kecuali jika selanjutnya terjadi kerugian kehancuran atau kerusakan fisik secara tiba-tiba dan tidak terduga, di mana dalam hal ini tanggung jawab Penanggung terbatas pada kerugian kerusakan atau kehancuran lanjutan tersebut.

2.6 polusi atau kontaminasi, kecuali disebabkan oleh kebakaran, petir, ledakan, pesawat udara atau peralatan terbang lainnya atau barang yang terjatuh daripadanya, kerusuhan, huru hara, pemogok, penghalangan pekerja, orang yang mengambil bagian dalam gangguan buruh, orang yang berbuat jahat (selain pencuri), gempa bumi, badai, banjir, meluapnya air dari suatu peralatan tangki atau pipa atau benturan oleh kendaraan darat atau binatang

2.7 pemberlakuan suatu ordonansi atau hukum yang mengatur konstruksi, perbaikan atau pemusnahan suatu Harta Benda yang Diasuransikan di sini kecuali yang diatur dalam Memorandum Otoritas Publik yang menjadi kesatuan *Bagian ini*

2.8 pencucian, penguapan, kehilangan berat, perubahan rasa, warna, tekstur atau lapisan penutup, pengaruh cahaya

2.9 perubahan suhu atau kelembaban, kegagalan atau tidak memadainya kerja suatu sistem pengatur udara, sistem pendingin atau pemanas karena kesalahan pengoperasian. Kewajiban pembuktian bahwa tidak terjadi kesalahan pengoperasian, berada di pihak Tertanggung

2.10 paparan terhadap kondisi cuaca di mana harta benda dibiarkan di tempat terbuka atau tidak ditempatkan dalam bangunan yang tertutup seluruhnya.

3. Penanggung tidak bertanggung jawab atas biaya

3.1 pembetulan material yang cacat, salah pengerjaan atau desain

3.2 pemeliharaan normal, perbaikan normal, perawatan

3.3 yang timbul dari salah atau tidak sahnya pemrograman, pelobangan, pelabelan atau penyisipan, pembatalan informasi yang tidak disengaja atau pembuangan media penyimpan data dan dari hilangnya informasi yang disebabkan oleh medan magnet.



Special Condition to Section I

1. Sums Insured :

It is a requirement of this Insurance that the sums insured stated in the Schedule shall not be less than the cost of reinstatement as if such property were reinstated on the first day of the Period of Insurance which shall mean the cost of replacement of the insured items by new items in a condition equal to but not better or more extensive than its condition when new.

2. Basis of Loss Settlement :

In the event of any loss destruction or damage the indemnification under this section shall be calculated on the basis of the reinstatement or replacement of the property lost destroyed or damaged, subject to the following provisions:

2.1 Reinstatement or replacement shall mean:

- (1) where property is lost or destroyed, the rebuilding of any buildings or the replacement of any other property by similar property, in either case in a condition equal to but not better or more extensive than its condition when new
- (2) where property is damaged, the repair of the damage and the restoration of the damaged portion of the property to a condition substantially the same as but not better or more extensive than its condition when new.

2.2 Special Provisions:

- (1) The work of reinstatement (which may be carried out upon another site and in any manner suitable to the requirements of the Insured subject to the liability of the Insurers not being thereby increased) must be commenced and carried out with reasonable despatch otherwise no payment beyond the amount which would have been payable under the policy if this special provisions had not been incorporated herein shall be made
- (2) Where any property is lost destroyed or damaged in part only the liability of the Insurers shall not exceed the sum representing the cost which the Insurers could have been called upon to pay for reinstatement if such property had been wholly destroyed
- (3) If at the time of reinstatement the sum representing the cost which would have been incurred in the reinstatement if the whole property covered by such item had been destroyed exceeds the sum insured thereon at the commencement of any destruction of or damage then the Insured shall be considered as being his own insurer for the difference between the sum insured and the sum representing the cost of reinstatement of the whole of the property and shall bear a rateable proportion of the loss accordingly
- (4) Until the cost of reinstatement or replacement shall have been actually incurred the amount payable under each of the items shall be calculated on the basis of the actual cash value of such items immediately before the loss destruction or damage with due allowance for depreciation for age use and condition.

Kondisi Khusus untuk Bagian I

1. Harga Pertanggungan:

Merupakan suatu syarat dari Asuransi ini bahwa harga pertanggungan yang tercantum dalam Ikhtisar tidak boleh kurang dari biaya pemulihan seandainya harta benda tersebut dipulihkan pada hari pertama Jangka Waktu Asuransi yang berarti biaya penggantian benda yang diasuransikan dengan benda baru dalam kondisi yang sama tetapi tidak lebih baik atau lebih ekstensif dari kondisinya ketika baru.

2. Dasar Penyelesaian Kerugian

Dalam hal suatu kerugian kehancuran atau kerusakan pemberian ganti rugi berdasarkan bagian ini harus dihitung atas dasar pemulihan atau penggantian harta benda yang hilang hancur atau rusak, tunduk pada ketentuan-ketentuan berikut:

2.1 Pemulihan atau penggantian berarti:

- (1) Jika harta benda hilang atau hancur, konstruksi kembali suatu bangunan atau penggantian suatu harta benda lain dengan harta benda serupa, masing-masing dalam kondisi yang sama tetapi tidak lebih baik atau lebih ekstensif dari kondisinya ketika baru
- (2) Jika harta benda rusak, perbaikan kerusakan dan pemulihan bagian yang rusak dari harta benda ke suatu kondisi yang secara substansial sama tetapi tidak lebih baik atau lebih ekstensif dari kondisinya ketika baru.

2.2 Ketentuan Khusus:

- (1) Pekerjaan pemulihan (yang dapat dilaksanakan di lokasi lain dan dengan suatu cara yang sesuai dengan persyaratan Tertanggung dengan syarat tanggung jawab Penanggung karenanya tidak meningkat) harus dimulai dan dilaksanakan dengan cepat dan wajar jika tidak maka tidak ada pembayaran melebihi jumlah yang seharusnya dibayar berdasarkan polis ini jika seandainya ketentuan khusus ini tidak dibuat menjadi kesatuan daripadanya
- (2) Jika suatu harta benda hilang hancur atau rusak sebagian saja tanggung jawab Penanggung tidak akan melebihi jumlah yang mencerminkan biaya dimana Penanggung seharusnya membayar pemulihan kembali seandainya harta benda tersebut hancur seluruhnya
- (3) Jika pada saat pemulihan kembali jumlah yang mencerminkan biaya yang seharusnya dikeluarkan dalam pemulihan kembali seandainya keseluruhan harta benda yang dijamin oleh butir tersebut telah hancur melebihi harga pertanggungannya pada saat mulai terjadinya suatu kehancuran atau kerusakan maka Tertanggung dianggap sebagai penanggungnya sendiri untuk selisih antara harga pertanggungan dan jumlah yang mencerminkan biaya pemulihan kembali atas seluruh harta benda dan akan menanggung bagiannya secara proporsional dari kerugian tersebut.
- (4) Sampai biaya pemulihan kembali atau penggantian telah benar-benar timbul jumlah yang dapat dibayar berdasarkan masing-masing butir akan dihitung atas dasar nilai tunai sebenarnya dari butir-butir tersebut sesaat sebelum kerugian kehancuran atau kerusakan dengan memperhitungkan depresiasi untuk usia pemakaian dan kondisi.

3. First Loss Insurance

3.1 The items mentioned hereinafter are covered on a First Loss Basis, subject to amounts per item entered in the Schedule

- Money and stamps
- Employees Pedal Cycles and other Personal Effects.
- Documents, Manuscripts and Business Books: only the value of materials as stationery together with the cost of clerical labour expended in writing up and not the value of the information to the Insured.
- Computer Systems records: the value of materials together with the cost of clerical labour and computer time expended in reproducing such records (excluding any expense in connection with the production of information to be recorded therein), but not for the value of the information contained therein to the Insured.
- Patterns, Models, Moulds, Plans and Designs: an amount not exceeding the cost of the labour and materials expended in reinstatement.

3.2 Debris Removal

This policy covers the necessary expense for removal of debris of insured property from the described premises as a result of physical loss destruction or damage insured against under this policy.

The Insurers' total liability for debris removal is limited to the amount entered in the Schedule.

4. Capital Additions

The insurance by this policy shall, subject to its terms and conditions, extend to cover:

- any newly acquired buildings, machinery and other equipment in so far as the same are not otherwise insured, and
- alterations, additions and improvements to building, machinery and other equipment

during the current period of insurance at any of the premises hereby insured, provided that:

- 1) at any one location this increase shall not exceed 5 % of the total sum insured on such item;
- 2) the Insured advise the Insurers within three months of the particulars of any such capital additions and pay such additional premiums as the Insurers may require

3. Asuransi Kerugian Pertama

3.1 Butir-butir yang disebut berikut ini dijamin atas dasar Kerugian Pertama, dengan ketentuan jumlah tiap butir yang tercantum dalam Ikhtisar

- Uang dan meterai
- Sepeda dan Barang Pribadi lain milik karyawan
- Dokumen, Naskah dan Buku Kegiatan Usaha: hanya nilai material sebagai alat-tulis beserta biaya tenaga kerja administrasi yang dikeluarkan untuk menulis kembali secara lengkap dan bukan nilai informasi bagi Tertanggung
- Catatan Sistem Komputer: nilai material beserta biaya tenaga kerja administrasi dan waktu pengoperasian komputer yang dikeluarkan untuk mereproduksi catatan tersebut (tidak termasuk pengeluaran yang berkaitan dengan pembuatan informasi yang akan dicatat di dalamnya), tetapi tidak untuk nilai informasi yang terkandung di dalamnya bagi Tertanggung.
- Pola, Model, Cetakan, Rencana dan Desain: suatu jumlah yang tidak melebihi biaya tenaga kerja dan material yang dikeluarkan dalam pemulihan kembali.

3.2 Pemindahan puing

Polis ini menjamin biaya yang diperlukan untuk pemindahan puing dari harta benda yang diasuransikan dari lokasi yang disebutkan sebagai akibat dari kerugian kehancuran atau kerusakan fisik yang diasuransikan berdasarkan polis ini.

Total tanggung jawab Penanggung untuk pemindahan puing terbatas pada jumlah yang tercantum dalam Ikhtisar.

4. Tambahan Kapital

Asuransi berdasarkan polis ini, tunduk pada syarat dan kondisinya, diperluas untuk menjamin:

- setiap bangunan, mesin dan peralatan lain yang baru diperoleh sejauh harta benda tersebut belum diasuransikan, dan
- perubahan, penambahan dan perbaikan pada bangunan, mesin dan peralatan lain

selama jangka waktu asuransi pada suatu lokasi yang diasuransikan, dengan syarat bahwa:

- 1) pada tiap lokasi kenaikan ini tidak melebihi 5% dari total harga pertanggungan pada butir tersebut;
- 2) Tertanggung memberitahu Penanggung dalam waktu tiga bulan atas setiap keterangan tambahan kapital tersebut dan membayar premi tambahan sebagaimana yang diminta oleh Penanggung.

KLAUSUL WAJIB INDUSTRIAL ALL RISKS

PREMIUM PAYMENT CLAUSE

1. It is a condition precedent to liability under this Policy, any premium due must have been paid to and actually received in full by the Insurer:
 - 1.1 if the period of insurance is 30 (thirty) calendar days or more, payment of premium must be made within the grace period of 30 (thirty) calendar days starting from the inception date of the Policy; unless other means as agreed between the Insurer and the Insured.
 - 1.2 if the period of insurance is less than 30 (thirty) calendar days, payment of premium must be made within the period of insurance specified in the Policy; unless other means as agreed between the Insurer and the Insured.
2. Premium payment may be made by cheque, giro, transfer or other means as agreed between the Insurer and the Insured. The Insurer shall be deemed as having received the premium payment at the time when :
 - 1.1 the said premium is credited into the bank account of the Insurer; or
 - 1.2 the Insurer has agreed in writing on the settlement of the said premium.
3. In the event of the premium is not paid in the manner and within the time stipulated above, *this Policy shall be automatically terminated without issuing cancellation endorsement* starting from the expiry of the grace period and *the Insurer shall be discharged from any liability there from.* However the Insured shall remain obliged to pay the time on risk premium for the insurance period already lapsed amounting to 20% (twenty percent) of the annual premium.
4. Should there be any loss covered by this Policy during the grace period as stated in items (5.1.1.) and (5.1.2.) above, *the Insurer shall only be liable for such loss if the Insured pays the premium within that grace period.*

REMOVAL AND CHANGE OF OWNERSHIP CLAUSE

1. This insurance *shall not apply* to any insured property which has been removed to room or floor or location or premises other than those mentioned in this Policy, unless the Insurer has agreed to such removal beforehand and stated it in Policy Endorsement.

KLAUSUL PEMBAYARAN PREMI

1. Merupakan syarat dari tanggung jawab Penanggung atas jaminan asuransi berdasarkan Polis ini, setiap premi terhutang harus sudah dibayar lunas dan secara nyata telah diterima seluruhnya oleh Penanggung:
 - 1.1 jika jangka waktu pertanggungan tersebut 30 (tiga puluh) hari kalender atau lebih, maka pelunasan pembayaran premi harus dilakukan dalam tenggang waktu 30 (tiga puluh) hari kalender dihitung dari tanggal mulai berlakunya Polis; kecuali diperjanjikan lain antara Penanggung dan Tertanggung
 - 1.2 jika jangka waktu pertanggungan tersebut kurang dari 30 (tiga puluh) hari kalender, pelunasan pembayaran premi harus dilakukan dalam tenggang waktu sesuai dengan jangka waktu pertanggungan yang disebut dalam Polis; kecuali diperjanjikan lain antara Penanggung dan Tertanggung
2. Pembayaran premi dapat dilakukan dengan cara cek, bilyet giro, transfer atau dengan cara lain yang disepakati antara Penanggung dan Tertanggung. Penanggung dianggap telah menerima pembayaran premi, pada saat :
 - 1.1 premi bersangkutan sudah masuk ke rekening Bank Penanggung, atau
 - 1.2 Penanggung telah menyepakati pelunasan premi bersangkutan secara tertulis.
3. Apabila premi dimaksud tidak dibayar sesuai dengan ketentuan dan dalam jangka waktu yang ditetapkan, *Polis ini batal dengan sendirinya tanpa harus menerbitkan endorsemen pembatalan* terhitung mulai tanggal berakhirnya tenggang waktu tersebut dan *Penanggung dibebaskan dari semua tanggung jawab atas kerugian sejak tanggal dimaksud.* Namun demikian Tertanggung tetap berkewajiban membayar premi untuk jangka waktu pertanggungan yang sudah berjalan sebesar 20% (dua puluh per seratus) dari premi satu tahun.
4. Apabila terjadi kerugian yang dijamin oleh Polis dalam tenggang waktu sebagaimana dimaksud pada ayat (5.1.1.) dan (5.1.2.) di atas, *Penanggung hanya akan bertanggung jawab terhadap kerugian tersebut apabila Tertanggung melunasi premi dalam tenggang waktu bersangkutan.*

KLAUSUL PINDAH TEMPAT DAN PINDAH TANGAN

1. Pertanggungan ini *tidak berlaku* terhadap harta benda yang dipertanggungkan apabila harta benda tersebut dipindahkan ke ruangan atau lantai atau tempat atau bangunan atau lokasi selain dari yang disebutkan dalam Polis, kecuali apabila sebelumnya Penanggung telah menyetujui hal tersebut dan mencantulkannya dalam Lampiran Polis.

2. In the event of a change of ownership of the property and or interest insured, whether on the basis of agreement or due to the death of the Insured, this Insurance *shall automatically* terminate 10 (ten) calendar days after such change of ownership, unless the Insurer has given his consent in writing to continue this Insurance.

SALVAGE CLAUSE

1. In the event of loss or damage, the Insured shall be responsible, including to safeguard and keep the salvage, if any.
2. Provisions under paragraph (number 1) above *shall not be meant as an admission of liability* of the Insurer under this Policy.

FRAUDULENT REPORT CLAUSE

The Insured with the intention of taking benefit from this Policy *shall not be entitled to get indemnification* if the Insured deliberately :

1. discloses facts and or makes statements which are untrue regarding circumstances relating to the proposal submitted at the time of effecting this Policy and relating to the loss and or damage occurred;
2. exaggerates the amount of loss suffered;
3. hides or does not disclose the value of items which supposed to be part of the property or interest insured at the time of the occurrence of loss with the intention to avoid under insurance;
4. declares items which did not exist as being existent at the time of incident and states such items as had been destroyed;

5. hides saved items or their salvage and declares those items as had been destroyed;
6. uses any letter or evidence which is fake, falsehood or deceit.

FORFEITURE OF RIGHTS TO INDEMNIFICATION CLAUSE

1. The rights of the Insured to indemnification will be *automatically forfeited* if the Insured :

2. Apabila harta benda dan atau kepentingan yang dipertanggungkan pindah tangan, baik berdasarkan suatu persetujuan ataupun karena Tertanggung meninggal dunia, maka Polis ini *berakhir secara otomatis* 10 (sepuluh) hari kalender sejak pindah tangan tersebut, kecuali apabila Penanggung memberikan persetujuan secara tertulis untuk melanjutkannya.

KLAUSUL SISA BARANG

1. Dalam hal terjadi kerugian atau kerusakan, Tertanggung bertanggung jawab, termasuk menjaga dan menyimpan sisa barang yang terselamatkan, jika ada.
2. Ketentuan pada ayat (nomor 1) di atas *tidak dapat diartikan sebagai pengakuan tanggung jawab* Penanggung berdasarkan polis ini.

KLAUSUL LAPORAN TIDAK BENAR

Tertanggung yang bertujuan memperoleh keuntungan dari jaminan Polis ini *tidak berhak mendapatkan ganti rugi* apabila dengan sengaja:

1. mengungkapkan fakta dan atau membuat pernyataan yang tidak benar tentang hal-hal yang berkaitan dengan permohonan yang disampaikan pada waktu pembuatan Polis ini dan yang berkaitan dengan kerugian dan atau kerusakan yang terjadi;
2. memperbesar jumlah kerugian yang diderita;
3. menyembunyikan atau tidak memberitahukan nilai barang-barang yang seharusnya menjadi bagian dari harta benda atau kepentingan yang dipertanggungkan pada saat terjadinya kerugian dengan tujuan untuk menghindari pertanggunggan di bawah harga;
4. memberitahukan barang-barang yang tidak ada sebagai barang-barang yang ada pada saat peristiwa dan menyatakan barang-barang tersebut musnah;

5. menyembunyikan barang-barang yang terselamatkan atau barang-barang sisanya dan menyatakan sebagai barang-barang yang musnah;
6. mempergunakan surat atau alat bukti palsu, dusta atau tipuan.

KLAUSUL HILANGNYA HAK GANTI RUGI

1. Hak Tertanggung atas ganti rugi berdasarkan ketentuan Polis ini *hilang dengan sendirinya* apabila:

- 1.1 fails to submit claim according to provisions of claims procedure;
- 1.2 fails to file an objection nor request for settlement by arbitration or other legal proceeding within 6 (six) months from the time the Insurer declares in writing that the Insured does not have any rights for indemnification;
- 1.3 fails to comply with obligations under this Policy;

2. The rights of the Insured to claim for an indemnification which is greater than that has been agreed by the Insurer will be forfeited if within 3 (three) months from the time the Insurer notifies in writing, the Insured does not submit any written objection or does not take settlement by arbitration or other legal proceeding.

CURRENCY CLAUSE

In case of premium and or claim under this Policy is denominated in foreign currency but the payment will be settled in Rupiah currency, such payment shall be executed based on the selling rate of Bank Indonesia at the time of payment.

TERMINATION OF INSURANCE CLAUSE

1. the Insurer and the Insured are respectively entitled to terminate this Insurance at any time by giving the reason. Such notification of termination shall be made in writing by registered letter by the party who wants the termination to the other party at their latest known address. The Insurer is released from all liabilities under this Policy within 5 (five) calendar days from the dispatch date of the notification.
2. Should there be any termination of insurance as stated in paragraph (1) above, a refund premium shall be made on pro rata basis for the unexpired insurance period, after being deducted by the Insurer's acquisition cost. However, in case this insurance terminated by the Insured whereas during the insurance period already lapsed there be a claim exceeding the premium stated in the Schedule, the Insured *shall not be entitled to any refund premium* for the unexpired insurance period.

DISPUTE CLAUSE

1. In the event of any dispute arising between the Insurer and the Insured as consequence of the interpretation of liability or amount of indemnity of this Policy, the dispute shall be settled amicably by the complaint handling and resolution unit of the Insurers within 60 (sixty) calendar days from the dispute arose. The dispute arises since the Insured has expressed disagreement in writing on the subject matter of the dispute.

- 1.1 tidak mengajukan tuntutan ganti rugi sesuai prosedur klaim;
- 1.2 tidak mengajukan keberatan atau menempuh upaya penyelesaian melalui arbitrase atau upaya hukum lainnya dalam waktu 6 (enam) bulan sejak Penanggung memberitahukan secara tertulis bahwa Tertanggung tidak berhak untuk mendapatkan ganti rugi;
- 1.3 tidak memenuhi kewajiban berdasarkan Polis ini.

2. Hak Tertanggung untuk menuntut ganti rugi dalam jumlah yang lebih besar daripada yang telah disetujui Penanggung akan hilang apabila dalam waktu 3 (tiga) bulan sejak Penanggung memberitahukan secara tertulis, Tertanggung tidak mengajukan keberatan secara tertulis atau tidak menempuh upaya penyelesaian melalui arbitrase atau upaya hukum lainnya.

KLAUSUL MATA UANG

Dalam hal premi dan atau klaim berdasarkan polis ini ditetapkan dalam mata uang asing tetapi pembayarannya dilakukan dengan mata uang rupiah, maka pembayaran tersebut dilakukan dengan menggunakan kurs jual Bank Indonesia pada saat pembayaran.

KLAUSUL PENGHENTIAN PERTANGGUNGAN

1. Penanggung dan Tertanggung masing-masing berhak setiap waktu menghentikan pertanggungan ini dengan memberitahukan alasannya. Pemberitahuan penghentian dimaksud dilakukan secara tertulis melalui surat tercatat oleh pihak yang menghendaki penghentian pertanggungan kepada pihak lainnya di alamat terakhir yang diketahui. Penanggung bebas dari segala kewajiban berdasarkan Polis ini, 5 (lima) hari kalender terhitung sejak tanggal pengiriman surat tercatat atas pemberitahuan tersebut.
2. Apabila terjadi penghentian pertanggungan sebagaimana dimaksud pada ayat (1) di atas, premi akan dikembalikan secara prorata untuk jangka waktu pertanggungan yang belum dijalani, setelah dikurangi biaya akuisisi Penanggung. Namun demikian, dalam hal penghentian pertanggungan dilakukan oleh Tertanggung di mana selama jangka waktu pertanggungan yang telah dijalani, telah terjadi klaim yang jumlahnya melebihi jumlah premi yang tercantum dalam Ikhtisar Pertanggungan, maka Tertanggung *tidak berhak atas pengembalian premi* untuk jangka waktu pertanggungan yang belum dijalani.

KLAUSUL PERSELISIHAN

1. Dalam hal timbul perselisihan antara Penanggung dan Tertanggung sebagai akibat dari penafsiran atas tanggung jawab atau besarnya ganti rugi dari Polis ini, maka perselisihan tersebut akan diselesaikan melalui forum perdamaian atau musyawarah oleh unit internal Penanggung yang menangani Pelayanan dan Penyelesaian Pengaduan bagi Konsumen. Perselisihan timbul sejak Tertanggung menyatakan secara tertulis ketidaksepakatan atas hal yang diperselisihkan. Penyelesaian perselisihan melalui perdamaian atau musyawarah dilakukan dalam waktu paling lama 60 (enam puluh) hari kalender sejak timbulnya perselisihan.

2. If the dispute could not be settled amicably as provided in item 1 above, both the Insurer and the Insured shall make statement of disagreement in writing. Then the Insured shall choose to settle the dispute through out of the court or court settlement by selecting either one of the following dispute settlement clauses as stated below.

A. Alternative Dispute Resolution Body

It is hereby declared and agreed that the Insured and the Insurer shall settle the dispute through Alternative Dispute Resolution Body under the Financial Services Authority.

B. Court

It is hereby declared and agreed that the Insured and the Insurer shall settle the dispute through the Court (Pengadilan Negeri) within the territory of the Republic of Indonesia.

WAIVER CLAUSE

It is hereby declared that in the event of the Insured or the Insurer terminates this insurance, then both parties agree to waive articles 1266 and 1267 of the Indonesian Civil Code and such termination shall be made without requiring any consent of the Court (Pengadilan Negeri) within the territory of the Republic of Indonesia.

ELECTRONIC DATE RECOGNITION CLAUSE EDRC (A)

This insurance does not cover any loss, damage, cost, claim or expense, whether preventative, remedial or otherwise, directly or indirectly arising out of or relating to:

- a) the calculation, comparison, differentiation, sequencing or processing of data involving the date change to the year 2000, or any other date change including leap year calculations, by any computer system, hardware, programme or software and/or any microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the Insured or not; or
- b) any change, alteration, or modification involving the date change to the year 2000, or any other date change including leap year calculations, to any such computer system, hardware, programme or software and/or any microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the insured or not.

2. Apabila penyelesaian perselisihan melalui perdamaian atau musyawarah sebagaimana diatur pada ayat 1 tidak mencapai kesepakatan, maka ketidaksepakatan tersebut harus dinyatakan secara tertulis oleh Penanggung dan Tertanggung. Selanjutnya Tertanggung dapat memilih penyelesaian sengketa di luar pengadilan atau melalui pengadilan dengan memilih salah satu klausul penyelesaian sengketa sebagaimana diatur di bawah ini.

A. Lembaga Alternatif Penyelesaian Sengketa Sektor Jasa Keuangan

Dengan ini dinyatakan dan disepakati bahwa Tertanggung dan Penanggung akan melakukan penyelesaian sengketa melalui Lembaga Alternatif Penyelesaian Sengketa Sektor Jasa Keuangan dibawah Otoritas Jasa Keuangan

B. Pengadilan

Dengan ini dinyatakan dan disepakati bahwa Tertanggung dan Penanggung akan melakukan penyelesaian sengketa melalui Pengadilan Negeri di wilayah Republik Indonesia.

KLAUSUL PENGESAMPINGAN

Dengan ini dinyatakan bahwa dalam hal Tertanggung atau Penanggung menghentikan pertanggungan ini, maka kedua belah pihak setuju untuk mengesampingkan Pasal 1266 dan 1267 Kitab Undang-Undang Hukum Perdata Indonesia dan penghentian pertanggungan tersebut dilakukan tanpa memerlukan persetujuan pengadilan Negeri di wilayah Republik Indonesia.

KLAUSUL PENGENALAN TANGGAL ELEKTRONIK EDRC (A)

Pertanggungan ini tidak menjamin setiap kerugian, kerusakan, biaya, atau klaim, berupa pencegahan, perbaikan atau hal lain yang secara langsung atau tidak langsung timbul atau berhubungan dengan

- a) Perhitungan, perbandingan, perbedaan, urutan atau proses dari data yang melibatkan perubahan data ke tahun 2000, atau setiap perubahan tanggal yang berbeda termasuk perhitungan tahun kabisat oleh sistem komputer, perangkat keras, program atau perangkat lunak dan/atau setiap microchip, sirkuit terintegrasi atau peralatan sejenis pada peralatan komputer atau non peralatan komputer, baik harta benda tersebut diasuransikan maupun tidak diasuransikan atau
- b) Setiap perubahan, modifikasi yang melibatkan perubahan data ke tahun 2000, atau setiap perubahan data lainnya termasuk perhitungan tahun kabisat oleh sistem komputer, perangkat keras, program atau perangkat lunak dan/atau setiap microchip, sirkuit terintegrasi atau peralatan sejenis pada peralatan komputer atau non peralatan komputer, baik harta benda tersebut diasuransikan maupun tidak diasuransikan.

This clause applies regardless of any other cause or event that contributes concurrently or in any sequence to the loss, damage, cost, claim or expense

EARTHQUAKE EXCLUSION CLAUSE

It is hereby agreed that this insurance shall not in any case to cover Earthquake, Fire following Earthquake, Volcanic Eruption and Tsunami.

EXTRA CONTRACTUAL OBLIGATION EXCLUSION CLAUSE

Notwithstanding anything contained in the policy to the contrary, it is hereby noted and agreed that this policy does not provide cover in respect of extra contractual Obligation howsoever arising, such being defined as any award made by a court of competent jurisdiction against an insurer, which award is not within the coverage granted by any insurance contract made between the parties in dispute.

Subject otherwise to the terms and conditions of the policy.

INDUSTRIES, SEEPAGE, POLLUTION AND CONTAMINATION CLAUSE (N.M.A 1685) ("SUDDEN AND ACCIDENTAL")

This Agreement does not cover any liability for :

- 1) Personal Injury or Bodily Injury or loss of damage to or loss of use property directly or indirectly caused by seepage, pollution or contamination provided always that this paragraph (1) shall not apply to liability for personal Injury or Bodily Injury or loss of or physical damage to or destruction of tangible property or loss of use of such property damage or destroyed, where such seepage pollution or contamination is caused by a sudden. Unintended and unexpected happening during the period of this Insurance.
- 2) The cost of removing mollifying or cleaning up seeping, polluting or contaminating substance unless the seepage pollution or contamination is caused by sudden, unintended and unexpected happening during the period of this insurance.
- 3) Fines, penalties, punitive or exemplary damage.

is clause shall not extend this Agreement to cover any liability which would not have been covered under this agreement had this clause not been attached

PROPERTY DAMAGE CLARIFICATION CLAUSE

It is hereby agreed that the property damage covered under this insurance shall mean physical damage to the substance of property,

Klausul ini tetap berlaku tanpa memperhatikan sebab atau peristiwa lain baik yang berkontribusi secara bersamaan maupun yang terdapat pada setiap rangkaian peristiwa terhadap kerugian, kerusakan, klaim dan biaya.

KLAUSUL PENGECEUALIAN RISIKO GEMPA BUMI

Dengan ini disetujui bahwa pertanggungan ini tidak menjamin risiko Gempa Bumi, Kebakaran akibat Gempa Bumi, Letusan Gunung Berapi dan Tsunami.

KLAUSUL PENGECEUALIAN KEWAJIBAN KONTRAKTUAL EKSTRA

Menyimpang dari Polis, dengan ini disepakati dan disetujui bahwa polis tidak menjamin kewajiban kontraktual tambahan dalam bentuk apapun, seperti semua keputusan yang dibuat oleh pengadilan terhadap Penanggung, yang mana keputusan pengadilan tersebut tidak termasuk dalam jaminan asuransi yang dipertanggungkan oleh kontrak asuransi yang telah dibuat oleh para pihak yang berselisih.

Kecuali ditetapkan dalam syarat dan kondisi Polis.

KLAUSUL INDUSTRI, REMBESAN, POLUSI DAN KONTAMINASI (N.M.A 1685) ("TIBA-TIBA DAN SECARA TIDAK SENGAJA")

Perjanjian ini tidak menjamin semua tanggung jawab hukum atas :

- 1) Luka diri sendiri atau Luka badan atau kerugian/kerusakan atau kehilangan fungsi dari harta benda yang secara langsung dan tidak langsung disebabkan oleh rembesan, polusi, atau kontaminasi, selalu berlaku untuk paragraf ini (1) tidak berlaku untuk tanggung jawab hukum atas luka diri sendiri atau luka badan atau kerugian /kerusakan harta benda atau kerugian /kerusakan harta benda berwujud atau kehilangan fungsi dari harta benda tersebut karena rusak, ketika terjadi rembesan, polusi atau kontaminasi secara tiba-tiba, tidak direncanakan dan tidak diperkirakan terjadi selama periode asuransi yang sedang berjalan.
- 2) Biaya untuk pemindahan dan pembersihan atas zat atau bahan rembesan, polusi atau kontaminasi yang terjadi secara tiba-tiba, tidak direncanakan dan tidak diperkirakan terjadi selama periode asuransi yang sedang berjalan.
- 3) Denda, penalti, hukuman atau kerusakan yang dapat menjadi peringatan.

Klausul ini tidak akan memperluas Perjanjian ini untuk menjamin semua tanggung jawab hukum yang tidak dijamin dalam perjanjian ini apabila klausul ini tidak dilekatkan.

KLAUSUL PENJELASAN KERUSAKAN HARTA BENDA

Dengan ini disetujui bahwa kerusakan harta benda yang dijamin dalam pertanggungan ini berarti kerusakan fisik pada substansi harta benda,

which is not include damage to the data or software, in particular any detrimental change in data, software or computer programs that caused by a deletion, a corruption or deformation of the original structure.

Consequently, the following are excluded from this insurance :

1. Loss or damage to data or software, in particular any detrimental change in data, software or computer programs that caused by a deletion, a corruption or deformation of the original structure and any business interruption losses resulting from such loss or damage. Notwithstanding this exclusion, loss of or damage to data or software which is the direct consequence of insured physical damage to the substance of property shall be covered.
2. Loss or damage resulting from an impairment in the function, availability, range of use or accessibility of data, software or computer programs and any business interruption losses resulting from such loss or damage.

TERRORISM EXCLUSION CLAUSE NMA 2920 - 08/10/2001

Notwithstanding any provision to the contrary within this insurance or any endorsement thereto it is agreed that this insurance excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause or event contributing concurrently or in any other sequence to the loss.

For the purpose of this endorsement an act of terrorism means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organization(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

This endorsement also excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to any act of terrorism.

If the Underwriters allege that by reason of this exclusion, any loss, damage, cost or expense is not covered by this insurance the burden of proving the contrary shall be upon the Assured.

In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

dimana tidak termasuk kerusakan pada data atau perangkat lunak, terutama perubahan data yang menyebabkan kerusakan, perangkat lunak atau program komputer yang disebabkan oleh penghapusan, pengurangan atau perubahan bentuk struktur asli.

Akibatnya, hal-hal berikut dikecualikan dari pertanggungan ini :

1. Kerugian atau kerusakan data atau perangkat lunak, terutama perubahan data yang menyebabkan kerusakan, perangkat lunak atau program komputer yang disebabkan oleh penghapusan, pengurangan atau perubahan bentuk struktur asli dan setiap gangguan usaha yang timbul dari kerugian atau kerusakan tersebut. Meskipun dikecualikan, kerugian atau kerusakan pada data atau perangkat lunak sebagai akibat langsung kerusakan fisik pada substansi harta benda yang diasuransikan akan dijamin.
2. Kerugian atau kerusakan yang timbul dari pelemahan fungsi, ketersediaan, luas penggunaan atau kemudahan untuk memperoleh data, perangkat lunak atau program komputer dan setiap gangguan usaha yang timbul dari kerugian atau kerusakan tersebut.

KLAUSUL PENGECUALIAN TERORISME NMA 2920 - 08/10/2001

Menyimpang dari ketentuan polis atau setiap endorsement daripadanya, disepakati dan disetujui bahwa Pertanggungan ini mengecualikan kerugian, kerusakan dan biaya dari sebab apapun yang secara alami disebabkan secara langsung dan tidak langsung, hasil dari, atau berhubungan dengan setiap tindakan terorisme tanpa memperhatikan semua sebab atau peristiwa lain yang berkontribusi secara bersamaan atau terdapat pada setiap rangkaian peristiwa terhadap kerugian.

Definisi dari tindakan terorisme adalah tindakan atau perbuatan, termasuk tetapi tidak terbatas pada penggunaan pemaksaan, kekerasan dan/atau ancaman, dari seseorang atau kelompok orang, apakah bertindak sendiri atau atas nama dari organisasi, pemerintahan, tujuan politik, agama, ideologi, atau tujuan lain yang sejenis termasuk tujuan atau niat untuk mempengaruhi pemerintahan dan/atau yang membuat ketakutan publik/masyarakat, atau setiap bagian dari public/masyarakat

Endorsement ini juga mengecualikan kerugian, kerusakan dan biaya dalam bentuk apapun yang secara alami disebabkan secara langsung atau tidak langsung atau dalam hubungan dengan setiap tindakan untuk mengontrol, mencegah, menghalangi atau dalam cara lain yang berhubungan dengan setiap tindakan terorisme.

Apabila Underwriter menyatakan bahwa kerugian, kerusakan atau biaya tidak dijamin berdasarkan Klausul ini, maka kewajiban untuk membuktikan bahwa kerugian atau kerusakan tersebut dijamin oleh Polis berada pada Tertanggung.

Apabila di setiap peristiwa ada beberapa bagian / sebagian dari endorsement ini diketemukan tidak berlaku atau tidak dapat dijalankan, maka beberapa bagian / sebagian sisanya tetap akan berlaku dan berjalan.

TRANSMISSION AND DISTRIBUTION LINES EXCLUSION CLAUSE

All transmission and distribution lines, including wire, cables, poles, pylons, standard, towers and any equipment of any type of which may be attendant to such installation, including substations of any description. This exclusion includes but is not limited to transmission or distribution of electrical power, telephone or telegraph signal, and all communication signals whether audio or visual.

This exclusion applies to both above and below ground equipment except 305 meters (or 1000 feet) from an insured structure.

This exclusion applies both to physical loss or damage to the equipment and all business interruption, consequential loss, and/or other contingent losses related to transmission and distribution lines.

COMMUNICABLE DISEASE ENDORSEMENT

1. This policy, subject to all applicable terms, conditions and exclusions, covers losses attributable to direct physical loss or physical damage occurring during the period of insurance. Consequently and notwithstanding any other provision of this policy to the contrary, this policy does not insure any loss, damage, claim, cost, expense or other sum, directly or indirectly arising out of, attributable to, or occurring concurrently or in any sequence with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease.
2. For the purposes of this endorsement, loss, damage, claim, cost, expense or other sum, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test:
 - 2.1 for a Communicable Disease, or
 - 2.2 any property insured hereunder that is affected by such Communicable Disease.
3. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

- 3.1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
- 3.2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
- 3.3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property insured hereunder.

4. This endorsement applies to all coverage extensions, additional coverages, exceptions to any exclusion and other coverage grant(s).

KLAUSUL PENGECEUALIAN JARINGAN TRANSMISI DAN DISTRIBUSI

Semua jalur transmisi dan distribusi, termasuk kawat, kabel, tiang, tiang, standar, menara dan peralatan dari semua jenis yang mungkin dipergunakan untuk instalasi tersebut, termasuk gardu dengan deskripsi apapun. Pengecualian ini termasuk namun tidak terbatas pada transmisi atau distribusi tenaga listrik, telepon atau sinyal telegraf, dan sinyal komunikasi semua baik berupa audio atau visual.

Pengecualian ini berlaku baik untuk peralatan di bawah dan di atas tanah kecuali 305 meter (atau 1000 kaki) dari struktur objek yang dipertanggungkan.

Pengecualian ini berlaku baik untuk kerugian fisik atau kerusakan pada peralatan dan semua gangguan usaha, kerugian konsekuensial, dan / atau kerugian kontinjen lainnya yang berhubungan dengan jalur transmisi dan distribusi.

All other terms, conditions and exclusions of the policy remain the same.

LMA5393
25 March 2020

CYBER RISK EXCLUSION NMA 2915

Electronic Data Exclusion Notwithstanding any provision to the contrary within the Policy or any endorsement thereto, it is understood and agreed as follows : a) this policy does not insure loss, damage, destruction, distortion, erasure, corruption or alteration of ELECTRONIC DATA from any cause whatsoever (including but not limited to COMPUTER VIRUS) or loss of use, reduction in functionality, cost, expense of whatsoever nature resulting therefrom, regardless of any other cause or event contributing concurrently or in any other sequence to the loss. ELECTRONIC DATA means facts, concepts and information converted to a form useable for communications, interpretation or processing by electronic and electromechanical data processing or electronically controlled equipment and includes programs, software and other coded instructions for the processing and manipulation of data or the direction and manipulation of such equipment. COMPUTER VIRUS means a set of corrupting, harmful or otherwise unauthorized instructions or code including a set of maliciously introduced unauthorized instructions or code, programmatic or otherwise, that propagate themselves through a computer system or network of whatsoever nature. COMPUTER VIRUS includes but is not limited to 'Trojan Horses', 'worms' and 'time or logic bombs'. Electronic Data Processing Media Valuation Notwithstanding any provision to the contrary within the Policy or any endorsement thereto, it is understood and agreed as follows : Should electronic data processing media insured by this Policy suffer physical loss or damage insured by this policy, then the basis of valuation shall be the cost of the blank media plus the cost of copying the ELECTRONIC DATA from back-up or from originals of a previous generation. These cost will not include research and engineering nor any costs of recreating, gathering or assembling such ELECTRONIC DATA. If the media is not repaired, replaced or resorted the basis of valuation shall be the cost of any blank media. However, this policy does not insure any amount pertaining to the value of such ELECTRONIC DATA to the Assured or any other party, even is such ELECTRONIC DATA cannot be recreated, gathered or assembled. NMA 2915 25/01/01

CLAUSE INDUSTRIAL ALL RISK

1. ALTERATIONS CLAUSE (60 days)

Notwithstanding anything contained in the printed conditions of the Policy to the contrary, it is noted and agreed that this Insurance shall not be prejudiced in the event of any alterations being made to the property insured whereby the risk of damage is increased, provided that notice of such alterations be given to the Insurer within 60 days of the commencement of such alterations and additional premium paid, if required from the date of such alterations.

2. ALTERATION AND REPAIRS CLAUSE

Notwithstanding anything contained in the printed conditions of the Policy to the contrary, it is noted and agreed that this Insurance shall not be prejudiced in the event of any alterations being made to the property insured whereby the risk of damage is increased, provided that notice of such alterations be given to the Insurer within thirty (30) days of the commencement of such alterations and additional premium paid, if required from the date of such alterations.

All the conditions of the Policy except insofar as they may be hereby expressly varied shall apply as if they had been incorporated herein.

3. ALL OTHER CONTENTS CLAUSE (Limit IDR 100,000,000.00 / item and in aggregate)

It is agreed that the term "other terms" is understood to include

- a. Money and stamps not otherwise specifically insured for an amount not exceeding Limit IDR 100,000,000.00 / item and in aggregate
- b. Documents, manuscripts and business books but only for the value of the materials as stationery, together with the cost of clerical labour expended in writing up, and not for the value for an amount not exceeding Limit IDR 100,000,000.00 / item and in aggregate
- c. Computer system records but only for the value of the materials together with the cost of clerical labour and computer time expended in reproducing such records (excluding any expenses in connection with the production of information to be recorded therein) and not for the value to the insured of the information contained therein for an amount not exceeding Limit IDR 100,000,000.00 / item and in aggregate
- d. Patterns, moulds, models, plans and designs, for an amount not exceeding Limit IDR 100,000,000.00 / item and in aggregate
- e. Employees' pedal cycles, clothing, tools and other personal effects for an amount not exceeding Limit IDR 100,000,000.00 / item and in aggregate

Provided that the liability for such destruction or damage and free shall not exceed in the aggregate the sum insured.

4. APPRAISEMENT CLAUSE (15% of Total Sum Insured)

If the aggregate claim for any one loss does not exceed . or 15% of the sum insured by the item or items affected (whichever may be the less) no special inventory or appraisal of the undamaged property shall be required. If two or more buildings be included in a single item, this provision shall apply to range of buildings insured by this item. For the purpose if this clause, the term "item" shall be held to apply to the total sum insured on buildings and/or contents by the items affected.

5. AVERAGE RELIEF CLAUSE (85%)

Each item insured under this memorandum is declared to be separately subject to the following condition of average, namely :
If at the time of reinstatement the sum representing 85 % of the cost which would have been incurred in reinstatement if the whole of the property covered by such item had been destroyed the commencement of any destruction of or damaged to such property by any other peril hereby incurred against, then the insured shall be considered as being his own insurer for the difference between the sum insured and the sum representing the cost of reinstatement of the whole of the property and shall bear a rateable proportion of the loss accordingly.

6. BREACH OF WARRANTY CLAUSE

The conditions and warranties of this policy shall apply individually to each of the risks insured and not collectively to them. Thus, a breach of any conditions or warranty shall void the Section only in respect of all the risks to which that breach applied and does not affect the section in respect of the other risks.

7. BROAD PAIR AND SET CLAUSE

It is hereby noted and agreed that, in case of loss destruction or damage to part of a pair or set, the insurer will pay the full amount of the pair or set provided the insured agree to surrender the remaining article or articles of the pair or set to the insurer

8. CAPITAL ADDITIONS CLAUSE (10% of Total Sum Insured)

The Insurance hereby extends to cover alteration, additions and improvement (but not appreciation in value) in excess of the sums insured for buildings and machinery specified in the Policy for an amount not exceeding 10% of the sums insured thereby or *) whichever is the less, it being understood that the insured undertakes to advise the Insurer each quarter of such alteration, additions and improvements and to pay the appropriate additional premium thereon.

*COMMENT Underwriters to guarantee reasonable amount

9. CIVIL AUTHORITIES CLAUSE

The insurance is extended to cover direct loss or damage to the described property caused by acts of destruction executed by order of any Public Authority at the time of and only during a conflagration to retard the spread thereof, and subject to all other terms and conditions of this policy. This Insurer shall not be liable, however, for more than the amount for which it would have been liable had the loss been caused by the peril insured against under this Policy

10. CLAIM SETTLEMENT CLAUSE (30 days)

a. Insurers shall under this section, subject to the terms and conditions of the policy, indemnify the insured on the basis of the full cost of repairing, reinstating or replacing property lost or damage even though such cost may vary from the original construction costs including value added tax (PPN). b. It is agreed that all monies property due to in settlement of claims under this section of policy shall be paid to or their order.

11. COMPUTER RECORD CLAUSE

This insurance includes cover for computer system records but only for the value of the materials together with the cost of clerical labour and computer time expended in reproducing such records (excluding any expenses in connection with the production of information to be recorded therein) and not for the value to the Insured of the information contained therein

12. COST OF RE-ERECTION CLAUSE

The insurance by this policy extends to cover the cost of re-erecting, fitting and fixing machinery or plant destroyed or damaged by fire or by any other peril hereby insured against providing always that the liability of the Insurer shall not exceed the sum insured of such machinery or plant under this Policy.

13. DESIGNATION CLAUSE

For the purpose of determining where necessary the Column Heading under which any property is insured the Company agrees to accept the designation under which such property has been entered in the insured's books

14. DEFUNCT SPARE CLAUSE

It is noted and agreed that in the event of spares currently insured hereunder and represented within the Total Sum Insured under the Policy becoming obsolete following an indemnifiable loss to the unit and/or units to which they belong, such spares shall also be deemed a constructive total loss. Provided always that such spares cannot be used as spares for any other units within the premises of the Insured. Insurers retain salvage rights over such spares.

15. DETERIORATION OF STOCK CLAUSE

This Policy extends to include loss sustained by the Insured directly as a result of deterioration of goods which cannot be processed promptly due to interruption of or interference with the Business in consequence of Damage to Property Insured.

16. DISPUTE CLAUSE

1. In the event of any dispute arising between the Insurer and the Insured as consequence of the interpretation of liability or amount of indemnity of this Policy, the dispute shall be settled amicably by the complaint handling and resolution unit of the Insurers within 60 (sixty) calendar days from the dispute arose. The dispute arises since the Insured has expressed disagreement in writing on the subject matter of the dispute. 2. If the dispute could not be settled amicably as provided in item 1 above, both the Insurer and the Insured shall make statement of disagreement in writing. Then the Insured shall choose to settle the dispute through out of the court or court settlement by selecting either one of the following dispute settlement clauses as stated below. A. Alternative Dispute Resolution Body It is hereby declared and agreed that the Insured and the Insurer shall settle the dispute through Alternative Dispute Resolution Body under the Financial Services Authority. B. Court It is hereby declared and agreed that the Insured and the Insurer shall settle the dispute through the Court (Pengadilan Negeri) within the territory of the Republic of Indonesia.

17. EARTHQUAKE EXCLUSION CLAUSE

It is hereby noted and agreed that this insurance shall not in any case to cover Earthquake, Fire following Earthquake, Volcanic Eruption and Tsunami.

18. ESCALATION CLAUSE (15%)

It is hereby understood and agreed that if at anytime during the period of insurance the actual total value of the Property Insured shall exceed the Declared Values as stated hereon then the amounts stated in the Schedule shall be automatically increased provided that the amount of any such increase in Declared Values shall not exceed 15% of the sum stated in this Policy as the Declared Values.

19. EXPEDITING EXPENSES CLAUSE (10% of claim)

In the event of loss or damage to the Property Insured covered by the Policy, the cost of repair, replacement or rectifications under this policy shall included the additional cost of weekend and shift. Working bonus payments, plant hire, charges, express delivery (including airfreight) and the like necessarily and reasonably in expediting such repair replacement or rectification that such additional costs shall not in any event exceed 10 % of claim

20. FIRE BRIGADE CHARGES CLAUSE (Reasonable Cost)

It is hereby understood and agreed that the charges raised by any local authority for the provision of fire fighting appliances called for the purpose of protecting the premises shall be recoverable hereunder.

21. FIRE EXTINGUISHING COST CLAUSE (Reasonable Cost)

The insured by this policy extends to cover loss or damage to the fire extinguishing appliance caused by the insured perils.

This extension is deemed to include the cost reasonably incurred as a direct result of the use of the fire extinguishing appliances for the extinguishment of fire endangering the safety of the insured property. The company will not be liable for the first reasonable cost for each and every loss in respect of the costs of refills.

Provided always that the liability of the company in respect of such wages and costs shall be limited to those necessarily and reasonably incurred in extinguishing fires at or adjoining the situation of the property insured by this policy or immediately threatening to involve such property.

Provided further that the insurance under this endorsement and the policy shall be subject to all the terms limitations stipulation exclusions provisions and exceptions printed on expressed in endorsed upon or attached to the policy and provided also that all of the conditions of the policy (except in so far as they may be hereby varied) shall apply as if they had been incorporated herein.

22. GENERAL INTEREST CLAUSE

Certain of the Property insured may be the subject of hire purchase lease or other agreements and the interest of the other parties to these arrangements is noted in this insurance, the nature and extent of such interest to be disclosed by Insured in the event of damage

23. IMPACT BY OWN VEHICLE CLAUSE

It is noted and agreed that the cover relating to impact of vehicles at the Insured premises shall include vehicles owned or used by the Insured.

24. INTERNAL REMOVAL CLAUSE

It is understood and agreed that in the event of removal of property from one building to another at any of the situations covered by this Policy being inadvertently not advised to the Insurer, the insurance on such property shall follow removal, the necessary adjustments in Sum Insured and premium being made as from the date of removal as soon as the oversight is discovered.

25. INTERPRETATION CLAUSE

In the event of any conflict of interpretation between the various clauses and conditions contained in this Policy, the broadest and least restrictive wording to the benefit of the Insured shall always prevail. Notwithstanding the above, this insurance shall not be affected by the failure of the Insured to comply with laws, statutes or jurisdiction which would otherwise have been a bar to any claim in respect of loss, destruction or damage.

26. LEASED PROPERTY CLAUSE (if applicable)

This Policy extends to indemnify any other party having an interest in the property insured by virtue of and in accordance with the terms of a Mortgage, Leasing, Hiring or Renting Agreement, provided such property is not more specifically insured

27. LESSOR'S INTEREST CLAUSE (if applicable)

It is hereby noted and agreed that if applicable has a financial interest in the insured property to the extent of their stipulated loss value. until such time as the said lessor shall have notified the insurer in writing to the contrary the insurer shall advise the said lessor:



1. If he or it proposes to cancel or give notice of cancellation is to take effect;
2. of:
 - a. any material alteration; and
 - b. termination or expiry:
of any such insurance at least 30 days before such alterations termination or expiry.
3. promptly of may default in the payment of any premium or failure to renew any such insurance;
4. of any act or omission or of any event of which the insurer has knowledge and which he or it considers might invalidate or render enforceable in whole or in part any such insurance and
5. of any claim under the policy exceeding US\$ 10,000.00

it shall be further noted that in the event of loss any payment payable under this policy shall only be made with the written permission and consent of the lessor without prejudice to the rights of the insured for the difference and the said lessor shall act in its capacity as joint-insured to the terms conditions and restrictions contained in the policy.

28. LOADING AND UNLOADING CLAUSE

It is hereby agreed that this policy shall extend to cover loss or damage to the property insured happening during the course of loading or unloading operations from a stationary vehicle to the insured's premises.

29. LOSS OF DAMAGED GOODS CLAUSE

In case of damage to property bearing brands labels and trade marks the sale of which carries in any way a guarantee of the Insured, the salvage value of such damaged property shall be determined after the removal in the customary manner of all brands labels and trade marks which might be taken to indicate that the guarantee of the Manufacturer or the Insured attached to said property. However notwithstanding anything to the contrary elsewhere herein, it is understood and agreed that in case of damage to goods insured under this Policy due to a peril insured against, the Insured or their representative are to retain control of all damaged goods. The Insured, however agrees wherever practicable to use recondition or sell such good, the sale being made after removal of all brands labels or trade marks, with the Insurer being entitled to the proceeds of the sale. Where the use or disposal or sale of damage goods would be in the opinion of the insured or their representative detrimental to their interest such damage shall be treated as a constructive total loss and the Insured shall destroy the damaged goods in the presence of a representative of the Insurer and the Insured.

30. LANDSCAPE CLAUSE

This Policy is extended to include landscaping, which term shall mean lawns, gardens, ornamental plants shrubs and trees. The Insurer's liability for any one loss or series of losses arising out of any original source or cause at any one situation shall not exceed the Sub-Limit of Liability stated in the Schedule against "Landscaping" if any.

31. LANDSLIDE, LANDSLIP AND SUBSIDENCE CLAUSE

It is hereby noted and agreed that, this policy shall also cover the peril of subsidence, landslip or landslide.

It is hereby noted and agreed that, this policy shall also cover the peril of subsidence, landslip or landslide, whatsoever caused.

32. LOCK AND KEYS CLAUSE

It is hereby agreed that this insurance extends to include the cost of replacing locks and keys and/or combinations if, as a result of theft or any attempt thereat, keys and/or combination are stolen, or if there are any reasonable grounds to believe that they have been duplicated, also the cost of opening locked safes or strongrooms as a result of theft of keys and/or combinations.

33. MISDESCRIPTION CLAUSE

It is understood that this insurance shall not be prejudiced by any alteration or misdescription of occupancy provided the insured shall notify the Company immediately they become aware of the same and to pay additional premium if required from the date of the inception of the increased hazards.

34. METERED GAS EXTENSION

It is noted and agreed that Policy is also extended to cover loss of metered gas for which the Insured is responsible following its escape by sudden, unforeseen and accidental damage/loss from any pipe or installation subject to a limit

35. MINOR ALTERATIONS & REPAIRS CLAUSE

Minor alterations, additions and repairs to building, plant fixtures and fittings, and machinery (exclusive of any Sprinkler Installations) and minor works in progress are allowed and the insurance by this Policy shall not be prejudiced by this with limit.....% of Total Sum Insured

36. NOTIFICATION CLAUSE

It is hereby noted and agreed that the present situation, manner of connection, construction, nature and interior of the buildings and also the trade carried on therein, is known to us

37. NON-INVALIDATION CLAUSE

It is hereby agreed that this insurance shall not be invalidated by :

1. Any change of occupancy or increase of risk taking place in the property insured without the insured's knowledge, provided that they shall, immediately on the same coming to their knowledge, advise the insurers and pay any additional premium that may be required from the date of such increase of risk.
2. Workmen on premises for purpose of effecting repairs minor alterations or general maintenance purposes and the like

38. NEW LOCATION AND/OR NEW EQUIPMENT CLAUSE

It is hereby agreed that the Insurer will hold cover any new locations acquired by the Insured during the period of Insurance subject to not more than 1 and one location. The Insured shall declare to the Insurer immediately and additional premium shall be charged accordingly

39. OUTBUILDING CLAUSE

The insurance by each item under buildings is understood to include walls, gates and fence, small outside buildings, extensions, annexes, exterior staircase, fuel installations, steel or iron framework and tanks in the said premises and the insurance by each item under contents extends to contents of each outbuilding, provided their values are included in the sum insured.

40. ONSITE STORAGE CLAUSE

This Policy covers insured physical loss or damage to property of the type insured that is stored at an insured location prior to being used in a construction and/or installation and/or where construction and/or installation is temporarily suspended at an insured location. Coverage attaches at the time such property is delivered to the Insured or their contractor by the manufacturer or supplier. This coverage includes necessary expendable materials and supplies to be utilised in the construction or installation project but does not include any property owned or rented by the contractor. It is understood that the coverage provided by this provision is limited to an amount not exceeding 10% of total sums insured at the affected location at inception of the policy period. Should the insured require a higher limit for any property insured by this clause in excess of that amount, it is subject to agreement of the insurer.

41. OUTSIDE PREMISES STORAGE CLAUSE

Where the Insured enters into a contract for the storage of his goods and/or merchandise at outside premises and the terms of such storage contain a disclaimer Clause then this insurance shall not be prejudiced by the Insured agreeing to such terms.

42. PREMISES CLAUSE

Extends to cover property whilst on platform, alleys, yards, buildings and in the open within the compound. Excluding loss due to exposure to elements of sun (heat), rain, (eq.rust, evaporation).

43. PREVENTIVE MEASURE CLAUSE (Limit IDR 250,000,000.00)

It is agreed that in the event of actual damage (or imminent damage) to the Insured Property, the Insurer will pay the reasonable cost necessary in preventing, minimising or reducing damage to the Insured Property, which the Insured can prove were necessarily incurred immediately and urgently in an emergency.

44. PRORATE RETURN PREMIUM CLAUSE (subject to no claim)

Notwithstanding anything contained to the contrary, cancellation of certificate under this Policy and/or cancellation of the master Policy arranged for this programmed, return premium, if any shall be subject to prorata premium calculation basis.

45. PROPERTY UNDERGOING CONSTRUCTION AND ERECTION (Limit 10% of Total Sum Insured, maximum IDR 10,000,000,000.00)

It is understood and agreed that Section I extends to cover loss or damage to buildings and machinery while in the course of construction or erection excluding testing and commissioning.

46. PUBLIC AUTHORITIES CLAUSE

It is hereby agreed that this policy covers such additional cost of reinstatement of the destroyed or damaged property thereby Insured as may be incurred solely by reason of the necessity to comply with Building or other Regulations under or framed in pursuance of any Government Act or Bye-Law of any Municipal or Local Authority, provided always that :

1. The amount recoverable under this extension of the Policy shall not include :
 - a. The cost incurred in complying with any of the aforesaid Regulations or Bye-Laws
 - i. in respect of destruction or damage occurring prior to the granting of this extension,
 - ii. in respect of destruction or damage not insured by the Policy
 - iii. under which notice has been served upon the insured prior to the happening the destruction or damage
 - iv. in respect of undamaged property or undamaged portions of property.
 - b. The additional cost that would have been incurred to make good the property destroyed or damaged to a condition equal to its condition when new had the necessity to comply with any of the said Regulations or Bye-Laws not arisen;
 - c. The amount of any rate, tax, duty, development or other charge or assessment arising out of capital appreciation which may be payable in respect of the property or by the owner hereof by reason of compliance with any of the aforesaid Regulations or Bye-Laws.
2. The work of reinstatement must be commenced and carried out with reasonable dispatch and in any case must be completed within twelve months after the destruction or damage or within such further time as the Insurer may in writing allow and may be carried out wholly or partially upon another site (if the aforesaid Regulations or Bye-Laws so necessitate) subject to the liability of the Insurer under this extension not being thereby increased.
3. If the liability of the Insurer under (any item of) the Policy apart from this extension shall be reduced by the application of any of the terms and conditions of the Policy then the liability of the Insurer under this extension (in respect of any such item) shall be reduced in the like proportion.
4. The total amount recoverable under any item of the Policy shall not exceed the sum insured hereby.
5. All the conditions of the Policy except insofar as they may be hereby expressly varied shall apply as if they had been incorporated herein.

47. REMOVAL OF DEBRIS CLAUSE (10% of Sum Insured)

This Policy insures costs and expenses necessarily and reasonably incurred in respect of:

- i. The removal storage and/or disposal of debris or the demolition dismantling shoring up propping underpinning or other temporary repairs consequent upon damage to the Property Insured by this Policy;
- ii. The Insured's legal liability in respect of removal storage and/or disposal of debris provided that such liability was not assumed by the Insured under an agreement entered into after the commencement of the Period of Insurance or any renewal thereof unless liability would have attached in the absence of such agreement.
Provided that the insurance under this extension does not extend to any liability that the Insured may incur as a consequence of pollution of any kind.
- iii. The demolition and removal of any property belonging to the Insured which is no longer useful for the purpose it was intended providing such demolition and removal is necessary for the purpose of the reinstatement or replacement of Property Insured under this extension and is consequent upon damage to the Property Insured.

48. REMOVAL PERMIT CLAUSE

It is hereby understood and agreed that this policy shall be extended to cover against all direct loss and/or damage caused by the removing of property hereunder insured, from locations or premises affected by the perils insured hereunder, and also to cover during the term of ten (10) days, such property in any other place where it should be necessary to move the insured property in order to preserve it from the perils insured hereunder or to maintain it safe from the perils of the occurrence.

49. RIOT, STRIKES, MALICIOUS DAMAGE PLUS CIVIL COMMOTION (RSMD CC) 4.1 B ENDORSEMENT / AAUI 2007

It is hereby agreed and declared that:

- a. notwithstanding anything contained in CHAPTER II - EXCLUSIONS, Item 1.2.1 of this Policy to the contrary and subject to payment of additional premium, the Insurer agrees to extend this insurance as provided in this Endorsement;
- b. notwithstanding anything which may be defined in any laws or regulations to the contrary, for the purpose of this Endorsement, all terminology printed in italics shall be deemed to mean as defined in CHAPTER III - DEFINITIONS of the Policy.

1. EXTENSIONS

This insurance is extended to cover :

- Physical damage to the property and/or interest insured directly caused by one or more of the following perils:

1. *Riots*
2. *Strikes*
3. *Locked-out Workers*
4. *Malicious Acts*
5. *Civil Commotions*
6. *Preventive Acts related to perils 1.1 up to & including 1.5*

- Physical loss of the property and/or interest insured directly caused by:

7. *Looting occurring during Riots*
8. *Looting occurring during Civil Commotions*

provided that any of these perils does not develop in an uninterrupted chain of events into one or more of the excluded perils.

2. EXCLUSIONS

This extension does not cover all physical loss of or damage to the property and/or interest insured including loss or damage by fire directly or indirectly caused by or contributed to by or arising from or in consequence of one or more of the following perils:

1. *Insurrection/Popular Rising, Usurped Power, Revolution, Rebellion, Military Power, Invasion, Civil War, War and Hostilities, Subversive Acts, Terrorism, Sabotage, Looting (except Looting occurring during Riots or Civil Commotion).*

In any action, suit or other proceedings, where the Insurer alleges that Loss or damage is directly or indirectly caused by one or more of the excluded perils under this Section, the burden of proof that such Loss or damage is covered shall be on the Insured.

2. Total or partial cessation of works, or retarding or interruption or cessation of any process or operation.
3. Permanent or temporary dispossession resulting from confiscation, commandeering, requisition by any lawfully constituted authority or body, or unlawful occupation by any person.
4. Business interruption, or any kind of consequential loss.

3. DEDUCTIBLES

As per policy schedule.

4. DEFINITIONS

Notwithstanding anything which may be defined in any laws or regulations to the contrary, for the purpose of this Policy, all terminology printed in italics shall be defined as follows:

1. *Riots* is an act of a group of at least 12 (twelve) persons, who in the execution of their common purpose cause public disturbance tumultuously with violence and damage to the property of others, not amounting to *Civil Commotions* or not appertaining to the act of *Terrorism*.
2. *Strikes* is a deliberate act of damage, by a group of workers of at least 12 (twelve) persons or one half of the entire workforce (if the total number of workforce is less than 24 persons), refusing to work as usual in an attempt to force the employer to accept their demands or to protest against any terms of employment enforced by the employer provided that such act is not appertaining to the act of *Terrorism*.
3. *Locked-out Workers* is a deliberate act of damage, by a group of workers of at least 12 (twelve) persons or one half of the entire workforce (if the total number of workforce is less than twenty-four persons), to protest against the termination or suspension of a fellow employee by the employer provided that such act is not appertaining to the act of *Terrorism*.
4. *Malicious Acts* is an act of any person(s) deliberately causing damage to the property of others driven by vengeance, hatred, anger or vandalistic, except such acts done by the employee(s) of the Insured, or any person(s) on behalf of the Insured, or by person(s) entrusted by the Insured to maintain or keep such property, or by thieves/robbers/looters provided that such act is not appertaining to the act of *Terrorism*.
5. *Preventive Acts* is an act of lawful authority in an attempt to prevent or suppress the occurrence of any of insured perils or to minimize the consequences of any such perils.
6. *Civil Commotions* is an act of a large number of people acting together disrupting public peace and disturbance tumultuously with violence and a chain of destruction of a large number of properties, indicated by the cessation of more than one half of the normal activity of commercial/shopping or business areas or schools or public transportation in one city for at least 24 (twenty-four) hours consecutively commencing immediately before, during or after the event provided that such act is not appertaining to the act of *Terrorism*.
7. *Insurrection/Popular Rising* is an uprising of a majority of the people in the capital city of the country, or in three or more capital cities of the provinces within 12 (twelve) days, demanding a change in the government de jure or de facto, or open resistance against the government de jure or de facto, not amounting to a *Rebellion*.
8. *Usurped Power* is a situation where the established order has been overthrown and replaced by some illegal authority which is in a position to lay down rules of conduct and also ensure that the rules are obeyed.

- 9 **Revolution** is an uprising of the people with force to make a radical change to the current public administration system of the country or to overthrow the established government de jure or de facto, not amounting to a **Rebellion**.
- 10 **Rebellion** is a state of organized resistance against the established authority with the object of supplanting or overthrowing it with force using fire arms which threatens the existence of such authority.
- 11 **Military Power** is an act by a group of home or foreign armed forces personnel consisting of at least 30(thirty) persons using force with the intention to overthrow the established authority or to cause public disorder and disturbance.
- 12 **Invasion** is an act by the military power of one country to penetrate or invade the territory of another with the object of permanently or temporarily occupying and taking control over such territory.
- 13 **Civil War** is an armed conflict between regions or political factions within the territorial limits of a country with the object of gaining legitimate power.
- 14 **War and Hostilities** is a widespread armed conflict (whether or not war has been declared) or a warlike situation between two or more countries, including military exercises of a country or joint-military exercises between countries.
- 15 **Subversive Acts** is an act by any person on behalf of or in connection with any organization with activities directed towards the overthrow by force of the government "de jure" or "de facto", or to the influencing of it by **Terrorism** or **Sabotage** or violence.
- 16 **Terrorism** is an act by any person using force to create public fear in an attempt to achieve a goal which according to public opinion has a political background.
- 17 **Sabotage** is a destructive act against property or the obstruction of work process or causing the reduction in value of work, by any person in an attempt to achieve a goal which according to public opinion has a political background.
- 18 **Looting** is the appropriation of property belonging to another by any person (excluding those employed by or under the control of the Insured), with the intention of permanently depriving that other of it.

5. CANCELLATION

This Endorsement may be cancelled at any time by the Insurer by giving written notice through Registered Letter, Facsimile, Telex or Telegram to the Insured at this last known address. The Insurer is relieved from all liability under this Endorsement 3 (three) x 24 (twenty four) hours after the date of dispatch of written notice at 12.00 hours local time where the insured object is located. As a result of this cancellation, the Insurer is obliged to return prorata premium for the unexpired period of insurance.

All other terms and conditions of the Policy remain unchanged.

(This wording is a translation of the original version in Bahasa Indonesia; in the event of any dispute arising from the interpretation of any meaning herein, the terms and conditions shall be interpreted according to the original Bahasa Indonesia version).

50. SELLING PRICE CLAUSE

It is hereby agreed and declared that in respect of goods sold but not yet delivered for which the Insured is responsible and with regard to which under the written or printed conditions of sale the Sale Contract is cancelled by reason of the loss or damage indemnified by this Policy either wholly or to the extent of the loss or damage, the liability of the Insurer shall be based on the contract price, and for the purpose of average the value of all goods, to which this clause would in the event of loss or damage be applicable shall be ascertained on the same basis.

51. ELECTRICAL SHORT CIRCUIT (Limit IDR 250,000,000.00 anyone loss and IDR 1,000,000,000.00 in aggregate, applicable to items other than Machineries)

It is hereby expressly understood and agreed that this Policy also covers loss or damage caused by fire as a consequence of electrical short circuit.

52. STRUCTURAL ALTERATION CLAUSE

It is hereby understood that structural alteration and extension of the buildings mentioned in this policy is allowed, as are the erection of new buildings, installation, reinstallation, replacement of machines, tools, implements, piping or other installation required for the process carried on, parts of installation and objects as well as to movement of all these within the premises.

in case of removal or demolition of as insured object this insurance will cover the new items substituting the removed or demolished objects up to the original amount insured.

53. SPRINKLER LEAKAGE CLAUSE

It is hereby agreed and declared that the insurance under the Policy shall extend to cover loss or damage to the property insured caused by water accidentally discharged or leaking from the Automatic Sprinkler Installation subject to First Loss sum insured subject to a maximum of 10% of the total sum insured) and subject to a deductible of IDR 1,000,000.00 any one location and further subject to all the usual conditions of the Policy and the following special conditions :

1. The liability of Insurer shall in no case under this endorsement and the Policy exceed the sum insured by each item of the Policy.
2. Further provided that such discharge or leakage of water shall not be occasioned by or happen through:
 - a. Repairs or alterations to the buildings or premises.
 - b. The automatic sprinkler installation being either repaired, removed or extended.
 - c. The order of the Government or of any municipal local or other competent Authority.
 - d. Explosion, the blowing - up of buildings or blasting.
 - e. Defects in construction or condition of which the Insured is aware.
 - f. Condensation or deposits on the Automatic Sprinkler Installation.

54. STOCK DECLARATION CLAUSE (75%) - If Applicable

1. In consideration of the premium by this Policy being provisional in that it is calculated on 75% of the sum insured hereby and is subject to adjustment on expiry of each period of insurance:

The insured agrees to declare to the Insurer in writing the value of his stocks (other than retail), less any amount insured by Policies other than declaration policies, on the following basis namely the average of the values at risk during the month and to make such declaration within 30 days of the last day of the calendar month, such declaration to be signed by the Insured or by a responsible person authorized to sign on his behalf.

If other policies on a declaration basis cover the stocks hereby insured the declaration shall be made so as to apportion to each policy a share of the value of the stocks insured under such declaration policies, pro rata to the respective amounts named in the policies. In the event of a declaration not being made within the 30 days mentioned above then the Insured shall be deemed to have declared the sum hereby as the value at risk.

On the expiry of each period of insurance the premium shall be calculated at the rate quoted on the average sum insured, namely the total of the values declared or deemed to have been declared divided by the number of declarations due to have been made. If the resultant premium be greater than the provisional premium the Insured shall pay the difference, if it be less the difference shall be repaid to the Insured but such repayment shall not exceed 1/3 of the provisional premium.

2. The basis of value for declarations shall be the market value and any loss hereunder shall be settled on the basis of the market value immediately anterior to the loss.
3. If at the time of any loss, there be any other subsisting insurance of insurance on other than a declaration basis, whether effected by the Insured or by any other person or persons, covering the stocks hereby insured, this Policy shall apply only to the excess of the value of such stocks at the time of loss over the sum insured by such insurance or insurances, and this Insurer shall not be liable to contribute more than that proportion of such loss which such excess (or, if there be other declaration insurances covering the same stocks, a rateable proportion of such excess), but not exceeding the sum insured hereby, bears to the total value of the stocks.
4. If after the occurrence of a loss it is found that the amount of the last declaration previous to the loss is less than the amount that ought to have been declared, then the amount which would have been recoverable by the Insured shall be reduced in such proportion to the amount of the said last declaration bears to the amount that ought to have been declared.
5. Notwithstanding the occurrence of a loss it is understood that the sum insured will be maintained at all times during the currency of the Policy and the Insured therefore undertakes to pay extra premium on the amount of any loss pro rata from the date of such loss to the expiry of the period of insurance, the premium being calculated at the rate applicable to the stock destroyed and such extra premium shall not be taken into account in, and shall be distinct from, the final adjustment of premium.
6. In the event of this Policy being cancelled by the Insured during its currency (whether stocks exist or not) the premium to be retained by the Insurer shall be the appropriate short period premium calculated on the average amount insured up to the date of the cancelment, or 50% of the provisional premium whichever is the greater but if the Policy is cancelled by the Insured after a loss has occurred the premium to be retained by the Insurer shall be the pro rata proportion of the premium calculated on the average amount insured on the date of cancelment plus the pro rata proportion if the premium from the date of loss to the expiry of the period of insurance on the amount of the loss paid, or 50% of the provisional premium whichever is the greater.
7. The maximum liability of the Insurer shall not exceed the sum insured hereby and premium shall not be receivable on values insured thereof. The sum insured may, however, be increased by prior agreement with the Insurer in which event the new sum insured and the date from which it is effective will be recorded on the Policy by endorsement.
8. If the stocks hereby insured shall at the time of loss be collectively of greater value than the sum insured thereon, then the Insured shall be considered as being his own insurer for the difference and shall bear a rateable proportion of the loss accordingly. Every time, if more than one Sum Insured exist on stocks (other than retail) it shall be separately subject to this condition.
9. It is warranted that every other Policy on a declaration basis covering the stocks insured hereby shall be identical in wording with this Policy.
10. This insurance is subject in all respect to the printed conditions of the Policy except in so far as they may be varied by these special.

55. SUE AND LABOR CLAUSE

In the event of any reasonable expenses being incurred by the Insured in their efforts to recover safeguard or preserve the Property Insured to minimise any loss as insured by this Policy or to prosecute in its own name any claim for indemnity or damages or otherwise against any persons in respect of such loss the Insurer shall pay such expenses

56. SERVICE CLAUSE

The insurance by this Policy relating to machinery and equipment extends to include telephone, gas, water and electric instruments, meters, piping, cabling and the like and accessories thereof including similar property in adjoining yards or roadways or underground all the property of the insured or of suppliers or others for which the Insured are responsible provided their values are included in the sum insured.

57. TEMPORARY REMOVAL CLAUSE

It is hereby agreed and declared that subject to the exclusions and special conditions hereinafter contained, the insurer under this policy extends to cover the property, insured whilst temporarily removed from any part of the insured's premises to any other part of the insured's premises described herein, or to any other premises in Indonesia and in transit thereto and there from by road, rail or inland waterway, but excluding:

1. stock-in-trade and/or merchandise
2. motor vehicle other than forklift trucks and similar appliances used for hauling or conveying goods at the insured's premises.
3. property if and so far as it is otherwise insured.

58. TENANTS PRIVILEGE GRANTED CLAUSE

1. Permissions is hereby granted to the insured or any other party acting on behalf of the Insured, to effect contracts of agreements customary or necessary to the conduct of the business of the Insured under which the Insured may assume liability or grant releases therefrom, without prejudice to this Insurance, provided such contracts or agreements, oral or written, insofar as they affect any loss hereunder, are concluded prior to such loss, and the rights and obligations of the Insurer shall be governed by the terms of such loss, and the rights and obligations of the Insurer shall be governed by the terms of such contracts or agreements.
2. Permission is granted to make, immediately, all necessary property replacements and repairs

59. TENANT IMPROVEMENT CLAUSE

The insurance by this Policy extends to include tenants improvements and alteration to Landlord's property insofar as the Insured is responsible therefore.

60. UNDAMAGED STOCK CLAUSE

The policy extended to include any loss incurred less the amount of any salvage monies obtained in respect of undamaged stock and/or materials in trade becoming unusable for any reason whatsoever resulting solely from an occurrence of loss or damage insured by this Policy.

61. VEHICLE LOAD CLAUSE

In the event of the Insured's Property being left loaded in vehicles or freight containers overnight while in, on or about the premises hereby insured the Insurer will indemnify the Insured for the loss of or damage to such Property caused by fire or any other peril insured hereby, providing always that the Insurer's Liability shall not exceed the sum insured of such Property under the Policy.

62. WORKMEN'S CLAUSE

Workmen are allowed in and about any of the described premises for the purpose or making new erections or alteration, repair, decoration, plant installation, general maintenance and the like without prejudice to the terms and conditions of the Policy.

63. 72 HOURS CLAUSE (Including TSFWDLLS & RSMDCC + CC 4.1B Endorsement/AAUI 2007)

It is agreed that any loss of or damage to the insured property arising during any one period of 72 consecutive hours caused by storm, tempest, flood or earthquake shall be deemed as a single event and therefore to constitute one occurrence, with regard to the excesses provided for herein. For the purpose of the foregoing the commencement of any such 72 hours period shall be decided at the discretion of the Insured it being understood and agreed, however, that there shall be no overlapping in any two or more such 72 hours periods in the event of damage occurring over a more extended period of time

64. BANKER'S CLAUSE (PT. Bank BTPN Tbk)

It is noted and agreed that the property insured by this policy has been mortgaged with :

Name of Bank : PT. Bank BTPN Tbk

and that in consequence thereof, it has been agreed with the said mortgagee and the Insured, that in case of loss, if any, payable under this Policy any payment up to the amount to which the said mortgagee is entitled for principal, interest accrued and costs shall be made to the said mortgagee without prejudice to the rights the Insured may have on the difference.

This clause to be null and void on receipt of advice from the said mortgagee that they are no longer interested in the property insured under this Policy.

(14/AAUI/16/7)

65. CANCELLATION CLAUSE (30 days)

Both the insurer and the insured are entitled to terminate this insurance upon 30 (thirty) days notice in writing being given. Such termination should be effected of the registered letter.

When the insurer terminates the insurance, he is obliged to return pro rata premium for the unexpired period of insurance. If it is the insured who terminates the insurance, premium will be calculated on the short rate laid down in the current Fire insurance Tariff of Indonesia for the completed period of insurance.

66. COST OF RE-WRITING RECORDS AND CLAIM PREPARATION CLAUSE (2.5% of Total Sum Insured)

This policy extends to indemnify the insured in respect of the cost and expenses necessarily and reasonably incurred following loss destruction or damage to the property insured:

- to reconstruct and recompile records (but not for the value to the insured of the information contained therein)
- to extract and compile information required by the insurers from the insured's own records for the purpose of contesting any issue over the insurers liability under this policy

Provided always that no amount shall be recoverable under this policy, if subsequent to the incurrence of any expenses, the insurer deny the liability for any claim in respect of which expenses have been incurred (with or without the consent of the insurers)

67. CURRENCY CLAUSE

In case of premium and or claim under this Policy is denominated in foreign currency but the payment will be settled in Rupiah currency, such payment shall be executed based on the selling rate of Bank Indonesia at the time of payment.

68. ERROR AND OMISSION CLAUSE

The Insured shall not be prejudiced by an unintentional and/or inadvertent omission error incorrect valuation or incorrect description of the interests risk or property provided notice is given to the company as soon as practicable upon discovery of such error or omission.

69. LOSS NOTIFICATION CLAUSE (30 days)

Notwithstanding anything contained herein to the contrary it is agreed that this insurance will not be prejudiced by any inadvertent delays, errors or omission in notifying the Company of any circumstances or events giving rise or likely to give rise to a claim under this Policy.

70. NOMINATED ADJUSTER CLAUSE

It is hereby noted and agreed that in the event of a claim, loss adjusters to be selected from the following panel:

- VRS PT. Prima Adjusterindo Mandiri
- Atlas Adjuster
- PT. Mc Larens Indonesia
- PT. Cunningham Lindsey)

71. NUCLEAR ENERGY RISKS EXCLUSION CLAUSE (REINSURANCE) (1994) NMA 1975(A) WORLDWIDE EXCLUDING USA & CANADA

This Policy shall exclude Nuclear Energy Risks whether such risks are written directly and/or by way of reinsurance and/or via Pools and/or Associations. For all purposes of this Reinsurance Nuclear Energy Risks shall be defined as all first party and/or third party insurances (other than Workers' Compensation and/or Employers' Liability) in respect of: (I) All Property on the site of a nuclear power station. Nuclear Reactors, Reactor Buildings and Plant Equipment therein on any site other than a nuclear power station. (II) All Property, on any site (including but not limited to the sites referred to in (i) above) used or having been used for:- a) The generation of nuclear

energy; or b) The production, Use or Storage of Nuclear Material. (III) Any other Property eligible for insurance by the relevant local Nuclear Insurance Pool and/or Association but only to the extent of the requirements of that local Pool and/or Association. (IV) The supply of goods and services to any of the sites, described in (i) to (iii) above, unless such insurances or reinsurances shall exclude the perils of irradiation and contamination by Nuclear Material. Except as under-noted, Nuclear Energy Risks shall not include:- (i) Any insurance or reinsurance in respect of the construction or erection or installation or replacement or repair or maintenance or decommissioning of property as described in (i) to (iii) above (including contractor's plant and equipment). (ii) Any Machinery Breakdown or other Engineering insurance or reinsurance not coming within the scope of (a) above; Provided always that such insurance or reinsurance shall exclude the perils of irradiation and contamination by Nuclear Material. However, the above exemption shall not extend to: 1) The provision of any insurance or reinsurance whatsoever in respect of: a) Nuclear Material; b) Any Property in the High Radioactivity Zone or Area of any Nuclear Installation as from the introduction of Nuclear Material or - for reactor installations - as from fuel loading or first criticality where so agreed with the relevant local Nuclear Insurance Pool and/or Association. 2) The provision of any insurance or reinsurance for the undernoted perils: - Fire, lightning, explosion; - Earthquake; - Aircraft and other aerial devices or articles dropped therefrom; - Irradiation and radioactive contamination; - Any other peril insured by the relevant local Nuclear Insurance Pool and/or Association in respect of any other Property not specified in (1) above which directly involves the Production, Use or Storage of Nuclear Material as from the introduction of Nuclear Material into such Property. Definitions "Nuclear Material" means: (i) Nuclear fuel, other than natural uranium and depleted uranium, capable of producing energy by a self-sustaining chain process of nuclear fission outside a Nuclear Reactor, either alone or in combination with some other material; and (ii) Radioactive Products or Waste. "Radioactive Products or Waste" means any radioactive material produced in, or any material made radioactive by exposure to the radiation incidental to the production or utilisation of nuclear fuel, but does not include radioisotopes which have reached the final stage of fabrication so as to be usable for any scientific, medical, agricultural, commercial or industrial purpose. "Nuclear Installation" means: (i) Any Nuclear Reactor; (ii) Any factory using nuclear fuel for the production of Nuclear Material, or any factory for the processing of Nuclear Material, including any factory for the reprocessing of irradiated nuclear fuel; and (iii) Any facility where Nuclear Material is stored, other than storage incidental to the carriage of such material. "Nuclear Reactor" means any structure containing nuclear fuel in such an arrangement that a self-sustaining chain process of nuclear fission can occur therein without an additional source of neutrons. "Production, Use or Storage of Nuclear Material" means the production, manufacture, enrichment, conditioning, processing, reprocessing, use, storage, handling and disposal of Nuclear Material. "Property" shall mean all land, buildings, structures, plant, equipment, vehicles, contents (including but not limited to liquids and gases) and all materials of whatever description whether fixed or not. "High Radioactivity Zone or Area" means:- (i) For nuclear power stations and Nuclear Reactors, the vessel or structure which immediately contains the core (including its support and shrouding) and all the contents thereof, the fuel elements, the control rods and the irradiated fuel store; and (ii) For non-reactor Nuclear Installations, any area where the level of radioactivity requires the provision of biological shield.

72. PAYMENT ON ACCOUNT CLAUSE (25%)

It is hereby declared and agreed that progress payment on account of any loss recoverable under this policy will be made to the insured at such stages as may be mutually agreed upon if desired by the Insured and on production of an interim report by the loss adjuster (if appointed) provided that such payments are deducted from the finally agreed claim settlement figures.

73. PROFESSIONAL FEES CLAUSE (10% of Claim)

Notwithstanding anything herein contained to the contrary, this Policy shall compensate the Insured in respect of all fees reasonably incurred by the Insured for any professional bodies, including but not limited to Architects, Surveyor, Engineers, Consultant, Auditors etc. engaged for: - Estimates, plans, specifications, quantities, tenders and supervision - Fees/ costs of investigation and scrutiny by any Authority - Producing, certifying, verifying any particulars or details contained in Insured's books of accounts of other business books or documents - Costs of compiling records but only for the value of the materials used together with the costs for all labour expended in producing and certifying any information or reports as may be required by Insurers to substantiate the claim including technical advice obtained in quantification of the loss. In the reinstatement of the property insured consequent upon its destruction loss or damage by any of the insured perils. Provided the Insurer's Liability under this clause shall not exceed 10% of the individual sums insured.

74. WAIVER OF SUBROGATION CLAUSE

Insurers hereby agree to waive all rights of subrogation which they may have and acquire against any of the parties comprising the insured except when such rights of subrogation are acquired in consequence of any fraud, misrepresentation, non disclosure or breach of condition of warranty by that insured.

Nothing contained in this memorandum shall be deemed to increase the sum insured stated in the schedule of the policy.

75. WAIVER CLAUSE (article 1266 & 1267 Indonesian Civil Code)

It is hereby declared that in the event of the insured or the Insurer terminates this insurance, then both parties agree to waive articles 1266 and 1267 of the Indonesian Civil Code and such termination shall be made without requiring any consent of the court (Pengadilan Negeri) within the territory of the Republic of Indonesia.

76. CYBER RISK EXCLUSION CLAUSE (NMA 2915)

Electronic Data Exclusion Notwithstanding any provision to the contrary within the Policy or any endorsement thereto, it is understood and agreed as follows : a) this policy does not insure loss, damage, destruction, distortion, erasure, corruption or alteration of ELECTRONIC DATA from any cause whatsoever (including but not limited to COMPUTER VIRUS) or loss of use, reduction in

functionality, cost, expense of whatsoever nature resulting therefrom, regardless of any other cause or event contributing concurrently or in any other sequence to the loss. ELECTRONIC DATA means facts, concepts and information converted to a form useable for communications, interpretation or processing by electronic and electromechanical data processing or electronically controlled equipment and includes programs, software and other coded instructions for the processing and manipulation of data or the direction and manipulation of such equipment. COMPUTER VIRUS means a set of corrupting, harmful or otherwise unauthorized instructions or code including a set of maliciously introduced unauthorized instructions or code, programmatic or otherwise, that propagate themselves through a computer system or network of whatsoever nature. COMPUTER VIRUS includes but is not limited to 'Trojan Horses', 'worms' and 'time or logic bombs'. Electronic Data Processing Media Valuation Notwithstanding any provision to the contrary within the Policy or any endorsement thereto, it is understood and agreed as follows : Should electronic data processing media insured by this Policy suffer physical loss or damage insured by this policy, then the basis of valuation shall be the cost of the blank media plus the cost of copying the ELECTRONIC DATA from back-up or from originals of a previous generation. These cost will not include research and engineering nor any costs of recreating, gathering or assembling such ELECTRONIC DATA. If the media is not repaired, replaced or resorted the basis of valuation shall be the cost of any blank media. However, this policy does not insure any amount pertaining to the value of such ELECTRONIC DATA to the Assured or any other party, even is such ELECTRONIC DATA cannot be recreated, gathered or assembled. NMA 2915 25/01/01

77. PROPERTY DAMAGE CLARIFICATION CLAUSE

"It is hereby declared and agreed that property damage covered under this policy shall mean physical damage to the substance of the items insured."

Physical damage to the item(s) insured shall not include loss of or damage:

- A. To data or software, e.g. any detrimental change in data, software or computer programs caused by a deletion, corruption or deformation of the original structure. Notwithstanding this, however, loss of or damage to data or software which is the direct consequence of insured physical damage to the substance of the item(s) insured shall be covered.
- B. Resulting from an impairment in the function, availability, range of use or accessibility of data, software or computer programs of the item(s) insured.

Consequently, any business interruption losses resulting from the above, shall not be covered by this policy.

78. TERRORISM EXCLUSION ENDORSEMENT - NMA 2920

Notwithstanding any provision to the contrary within this insurance or any endorsement thereto it is agreed that this insurance excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause or event contributing concurrently or in any other sequence to the loss.

For the purpose of this endorsement an act of terrorism means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s), committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public, or any section of the public, in fear.

This endorsement also excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to any act of terrorism.

If the Underwriters allege that by reason of this exclusion, any loss, damage, cost or expense is not covered by this insurance the burden of proving the contrary shall be upon the Assured.

In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

79. EXTRA CONTRACTUAL OBLIGATIONS EXCLUSION CLAUSE

Notwithstanding anything contained in the policy to the contrary, it is hereby noted and agreed that this policy does not provide cover in respect of extra-contractual obligations howsoever arising, such extra contractual obligations being defined as any award made by court of competent jurisdiction against an Insurer, which award is not within the coverage granted by any insurance contract made between the parties in dispute. Subject to otherwise to the terms and conditions of the policy.

80. EDRC "A"

This insurance does not cover any loss, damage, cost, claim or expense, whether preventative, remedial or otherwise, directly or indirectly arising out of or relating to:

1. the calculation, comparison, differentiation, sequencing or processing of data involving the date change to the year 2000, or any other date change including leap year calculations, by any computer system, hardware, programme or software and/or any

microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the Insured or not; or

2. any change, alteration, or modification involving the date change to the year 2000, or any other date change including leap year calculations, to any such computer system, hardware, programme or software and/or any microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the insured or not.

This clause applies regardless of any other cause or event that contributes concurrently or in any sequence to the loss, damage, cost, claim or expense.

81. INDUSTRIES, SEEPAGE, POLLUTION AND CONTAMINATION EXCLUSION CLAUSE NMA 1685 (SUDDEN AND ACCIDENTAL)

This Agreement does not cover any liability for :

1. Personal Injury or Bodily Injury or loss of damage to or loss of use property directly or indirectly caused by seepage, pollution or contamination provided always that this paragraph (1) shall not apply to liability for personal Injury or Bodily Injury or loss of or physical damage to or destruction of tangible property or loss of use of such property damage or destroyed, where such seepage pollution or contamination is caused by a sudden. Unintended and unexpected happening during the period of this Insurance.
2. The cost of removing mollifying or cleaning up seeping, polluting or contaminating substance unless the seepage pollution or contamination is caused by sudden, unintended and unexpected happening during the period of this insurance.
3. Fines, penalties, punitive or exemplary damage.

This clause shall not extend this Agreement to cover any liability which would not have been covered under this agreement had this clause not been attached.

82. SANCTION AND LIMITATION EXCLUSION CLAUSE

No (re) insurer shall be deemed to provide cover and no (re) insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that re (insurer) to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America

83. INFORMATION TECHNOLOGY HAZARDS CLARIFICATION CLAUSE NMA 2912 - 12/11/01

Losses arising, directly or indirectly, out of :

- I. loss of, alteration of, or damage to
or
- II. a reduction in the functionality, availability or operation of

a computer system, hardware, programme, software, data, information repository, microchip, integrated circuit or similar device in computer equipment or non-computer equipment, whether the property of the policyholder of the insured or not, do not in and of themselves constitute an event unless arising out of one more or more of the following perils:

fire, lightning, explosion, aircraft or vehicle impact, falling objects, windstorm, hail tornado, cyclone, hurricane, earthquake, volcano, tsunami, flood, freeze or weight of snow.

84. TRANSMISSION & DISTRIBUTION LINES EXCLUSION CLAUSE (APPLICABLE FOR SECTION 1 AND 2 ONLY)

All transmission and distribution lines, including wire, cables, poles, pylons, standard towers and any equipment of any type of which may be attendant to such installation of any description. This exclusion includes but is not limited to transmission or distribution of electrical power, telephone or telegraph signal and all communication signals whether audio or visual. This exclusion applies to both above and below ground equipment except that which is within 1,000 metres of the insured's premises or as defined in the Insured's original policy(ies).

This exclusion applies both to physical or damage to the equipment and all business interruption, consequential loss and/or other contingent losses.

85. WAR AND CIVIL WAR EXCLUSION CLAUSE NMA 464

This Insurance does not cover any liability assumed by the Insured for loss or damage directly or occasioned by, happening through or in consequence of war, invasion, acts of foreign enemies, hostilities or war-like operations (whether war be declared or not), civil war, munity, civil commotion assuming the proportions of or amounting to popular rising, military rising, insurrection, rebellion, revolution, military or usurped power, martial law, confiscation or nationalisation or requisition or destruction of or damage to property by or under

the order of any Government or public or local authority

86. KLAUSULA PENYESUAIAN (AAUI 2016)

Isi polis ini telah disesuaikan dengan peraturan perundang-undangan termasuk ketentuan Peraturan Otoritas Jasa Keuangan.

87. LMA 5393 - COMMUNICABLE DISEASE ENDORSEMENT

1. This policy, subject to all applicable terms, conditions and exclusions, covers losses attributable to direct physical loss or physical damage occurring during the period of insurance. Consequently and notwithstanding any other provision of this policy to the contrary, this policy does not insure any loss, damage, claim, cost, expense or other sum, directly or indirectly arising out of, attributable to, or occurring concurrently or in any sequence with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease. 2. For the purposes of this endorsement, loss, damage, claim, cost, expense or other sum, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test: 2.1. for a Communicable Disease, or 2.2. any property insured hereunder that is affected by such Communicable Disease. 3. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where: 3.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and 3.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and 3.3. the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property insured hereunder. 4. This endorsement applies to all coverage extensions, additional coverages, exceptions to any exclusion and other coverage grant(s). All other terms, conditions and exclusions of the policy remain the same.

88. REINSTATEMENT VALUE CLAUSE (EXCLUDING STOCK)

It is hereby declared and agreed that in the event of the property insured being destroyed or damaged the basis upon which the amount payable under Building of the Policy is to be calculated shall be the cost of replacing or reinstating on the same site property of the same kind or type but not superior to or more extensive than the insured property when new, subject to the following Special Provisions and subject also to the terms and conditions of the Policy except insofar as the same may be varied hereby.

Special Provisions

1. The work of replacement or reinstatement (which may be carried out upon another site and in any manner suitable to the requirements of the Insured subject to the liability of Insurer not being thereby increased) must be commenced and carried out with reasonable despatch and in any case must be completed within 12 months after the destruction or damage or within such further time as the Insurer may (during the said 12 months) in writing allow otherwise no payment beyond the amount which would have been payable under the Policy if this memorandum had not been incorporated therein shall be made.
2. Until expenditure has been incurred by the Insured in replacing or reinstating the property destroyed or damaged the Insurer shall not be liable for any payment in excess of the amount which would have been payable under the Policy if this memorandum had not been incorporated therein.
3. No payment beyond the amount which would have been payable under the Policy if this memorandum had not been incorporated therein shall be made if at the time of any destruction or damage to any property insured hereunder such property shall be covered by any other insurance effected by or on behalf of the Insured which is not upon the identical basis of reinstatement set forth herein.
4. This memorandum shall be without force or effect if
 - a. The Insured fails to intimate to the Insurer within 6 months from the date of destruction or damage or such further time as the Insurer may in writing allow his intention to replace or reinstate the property destroyed or damaged.
 - b. The insured is unable or unwilling to replace or reinstate the property destroyed or damaged on the same or another site.

89. CYBER LOSS ABSOLUTE EXCLUSION CLAUSE IUA 09-081 for Non-marine Business

1. Notwithstanding any provision to the contrary within this contract, this contract excludes any Cyber Loss. 2. Cyber Loss means any loss, damage, liability, expense, fines or penalties or any other amount directly or indirectly caused by: 2.1 the use or operation of any Computer System or Computer Network; 2.2 the reduction in or loss of ability to use or operate any Computer System, Computer Network or Data; 2.3 access to, processing, transmission, storage or use of any Data; 2.4 inability to access, process, transmit, store or use any Data; 2.5 any threat of or any hoax relating to 2.1 to 2.4 above; 2.6 any error or omission or accident in respect of any Computer System, Computer Network or Data. 3. Computer System means any computer, hardware, software, application, process, code, programme, information technology, communications system or electronic device owned or operated by the Insured or any other party. This includes any similar system and any associated input, output or data storage device or system, networking equipment or back up facility. 4. Computer Network means a group of Computer Systems and other electronic devices or network facilities connected via a form of communications technology, including the internet, intranet and virtual private networks (VPN), allowing the networked computing devices to exchange Data. 5. Data means information used, accessed, processed, transmitted or stored by a Computer System. 6. When this clause forms part of a reinsurance contract, Insured shall be amended to read Original Insured.

90. Cyber Loss Limited Exclusion LMA 5410

Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy excludes any: 1.1 Cyber Loss; 1.2 loss, damage, liability, claim, cost, expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any loss of use, reduction in functionality, repair, replacement, restoration or reproduction of any Data, including any amount pertaining to the value of such Data; regardless of any other cause or event contributing concurrently or in any other sequence thereto. 2 In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect. 3 This endorsement supersedes and, if in conflict with any other wording in the Policy or any endorsement thereto having a bearing on Cyber Loss or Data, replaces that wording. Definitions 4 Cyber Loss means any loss, damage, liability, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any Cyber Act or Cyber Incident including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any Cyber Act or Cyber Incident. 5 Cyber Act means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any Computer System. 6 Cyber Incident means: 6.1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any Computer System; or 6.2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any Computer System. 7 System means: 7.1 any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party. 8 Data means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a Computer System.

91. POLITICAL RISK EXCLUSION

Loss of property due to political risk is hereby excluded. Political risk are defined as follow: Confiscation, expropriation, nationalization, commandeering, requisition or destruction of or damage to property by order of the government de jure or de facto or any public, municipal or local authority of the country or area in which the property is situated, seizure or destruction under quarantine or customs regulation.

92. ASBESTOS EXCLUSION

This Policy only insures asbestos physically incorporated in an insured building or structure, and then only that part of the asbestos which has been physically damaged during the policy period by one of these listed perils: Fire, Smoke Explosion, Lightning, Earthquake, Volcanic, Eruption, Windstorm, Hail, Direct impact of vehicle, Aircraft or vessel, Riot or Civil Commotion, Vandalism, or malicious mischief; or accidental discharge of fire protective equipment. This coverage is subject to all limitations in section 1 to which this endorsement is attached and, in addition, to each of the following specific limitations: 1.The said building or structure must be insured under section I for damage by that listed peril 2.The listed peril must be the immediate, sole cause of the damage to the asbestos. 3.The insured must report to the insurers the existence and cost of the damage as soon as practicable after the listed peril first damaged the asbestos. However, this policy does not insure any such damage first reported to the insurers more than 12 (twelve) months after the expiration, or termination, of the policy period. 4.Insurance under this policy in respect of asbestos shall not include any sum relating to: (i)Any faults in the design, manufacture or installation of the asbestos (ii)Asbestos not physically damaged by the listed peril including any governmental or regulatory authority direction or request of whatsoever nature relating to undamaged asbestos.

93. PROPERTY CYBER AND DATA EXCLUSION - LMA 5401

1. Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy excludes any: 1.1. Cyber Loss; 1.2. loss, damage, liability, claim, cost, expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any loss of use, reduction in functionality, repair, replacement, restoration or reproduction of any Data, including any amount pertaining to the value of such Data; regardless of any other cause or event contributing concurrently or in any other sequence thereto. 2. In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect. 3. This endorsement supersedes and, if in conflict with any other wording in the Policy or any endorsement thereto having a bearing on Cyber Loss or Data, replaces that wording. Definitions 4. Cyber Loss means any loss, damage, liability, claim, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any Cyber Act or Cyber Incident including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any Cyber Act or Cyber Incident. 5. Cyber Act means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any Computer System. 6. Cyber Incident means: 6.1. any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any Computer System; or 6.2. any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any Computer System. 7. Computer System means: 7.1. any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party. 8. Data means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a Computer System.

94. FORFEITURE OF RIGHTS TO INDEMNIFICATION CLAUSE

1. The rights of the Insured to indemnification will be automatically forfeited if the Insured : 1.1 fails to submit claim according to provisions of claims procedure; 1.2 fails to file an objection nor request for settlement by arbitration or other legal proceeding within 6 (six) months from the time the Insurer declares in writing that the Insured does not have any rights for indemnification; 1.3 fails to comply with obligations under this Policy; 2. The rights of the Insured to claim for an indemnification which is greater than that has been agreed by the Insurer will be forfeited if within 3 (three) months from the time the Insurer notifies in writing, the Insured does not submit any written objection or does not take settlement by arbitration or other legal proceeding.

95. IT CLARIFICATION AGREEMENT

Property damage covered under this Agreement shall include physical damage to the substance of property. Physical damage to the substance of property shall not include damage to data or software, in particular any detrimental change in data, software or computer programs that is caused by a detection of corruption or a deformation of the original structure. Consequently the following are excluded from this Agreement: A. Loss of damage to data or software, in particular any detrimental change in data, software or computer programs that is caused by a detection of corruption or a deformation of the original structure and any business interruption losses resulting from such loss or damage. Notwithstanding this exclusion, loss of or damage to data or software, which is the direct consequence of insured physical damage to the substance of property shall be covered. B. Loss or damage resulting from an impairment in the function, availability, range of use or accessibility of data, software or computer programs, and any business interruption losses resulting from such loss or damage.

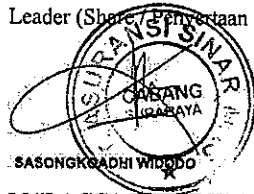
96. CO-INSURANCE CLAUSE

It is hereby understood and agreed that the following Co- Insurance Clause is deemed to be part of this policy : 1. The subscription hereto of The Co - Insurance is as follows : - PT. ASURANSI SINAR MAS (AS LEADER/20%) - PT. MALACCA TRUST WUWUNGAN INSURANCE (AS MEMBER/17,5%) - PT. ASURANSI UMUM MEGA (AS MEMBER/15%) - PT. SAHABAT INSURANCE (AS MEMBER/10%) - PT. CHINA TAIPING INSURANCE INDONESIA (AS MEMBER/10%) - PT. ASURANSI CENTRAL ASIA (AS MEMBER/10%) - PT. ASURANSI TRI PAKARTA (AS MEMBER/10%) - PT. ASURANSI MULTI ARTHA GUNA TBK (AS MEMBER/7,5%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) - (AS MEMBER/%) 2.The Co - Insurers, each for itself and not one for the other are severally and independently liable only for the proportion of any loss or damage recoverable hereunder as their respective subscription hereto bears to the total value insured and shall, in no event, be responsible for the liability of the other Co-Insurers. 3.PT. ASURANSI SINAR MAS has been appointed as coordinator and representative of the Co-members, and shall attend to the negotiation with the Insured in all matters connected with this insurance, including collection of insurance premiums and settlement of claim (if any). 4.Any agreement which may be made between The Insured and PT. ASURANSI SINAR MAS regarding this insurance shall be final and binding upon all other Co-members. 5.Any notice which may be given by the Insured to PT. ASURANSI SINAR MAS in writing or otherwise shall be deemed as being given to all others Co-members as well. 6.The Co-members undertake to settle their share of losses (if any) at no later date than that on which the PT. ASURANSI SINAR MAS is obliged to settle the claims (if any) in accordance with the policy conditions. PT. ASURANSI SINAR MAS (Leader/20%) PT. MALACCA TRUST WUWUNGAN INSURANCE PT. ASURANSI UMUM MEGA (Member/17,5%)(Member/15%) PT. SAHABAT INSURANCE PT. CHINA TAIPING INSURANCE INDONESIA (Member/10%)(Member/10%) PT. ASURANSI CENTRAL ASIA PT. ASURANSI TRI PAKARTA (Member/10%)(Member/10%) PT. ASURANSI MULTI ARTHA GUNA TBK (Member/7,5%)(Member/%) (Member/%)(Member/%) (Member/%)(Member/%) (Member/%) (Member/%) (Member/%) (Member/%) (Member/%) (Member/%)

Names of CO-INSURER(S) and their respective shares are as follows :
Nama KO-ASURADUR dan saham masing-masing adalah sebagai berikut :

ASURANSI SINAR MAS - SURABAYA

Leader (Share / Penyertaan : 20,00 %)



MALACCA TRUST WUWUNGAN INSURANCE - SURABAYA

Member (Share / Penyertaan : 17,50 %)

ASURANSI TRI PAKARTA - SURABAYA

Member (Share / Penyertaan : 10,00 %)

ASURANSI UMUM MEGA - SURABAYA - SURABAYA

Member (Share / Penyertaan : 15,00 %)

ASURANSI CENTRAL ASIA - SURABAYA

Member (Share / Penyertaan : 10,00 %)

ASURANSI MULTI ARTHA GUNA - SURABAYA

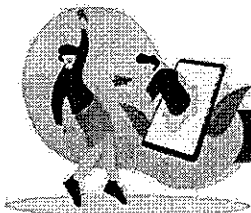
Member (Share / Penyertaan : 7,50 %)

SAHABAT INSURANCE - SURABAYA

Member (Share / Penyertaan : 10,00 %)

CHINA TAIPING INSURANCE INDONESIA - SURABAYA

Member (Share / Penyertaan : 10,00 %)



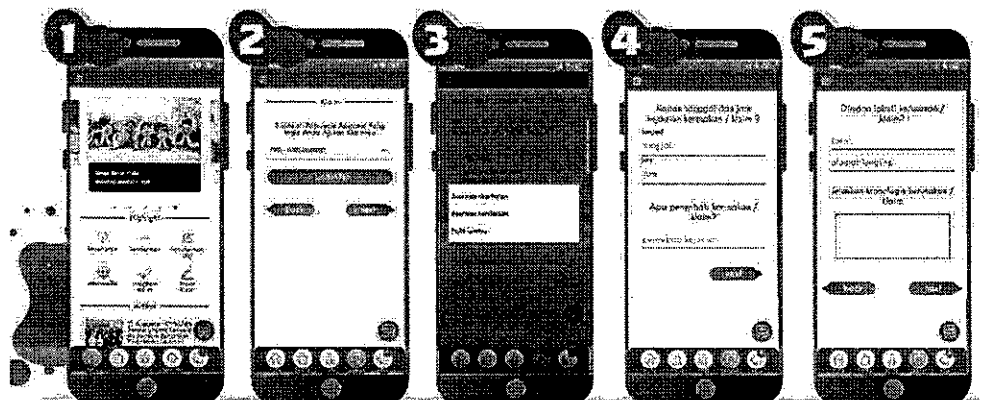
PANDUAN

LAPOR KLAIM ASURANSI KEBAKARAN

melalui Mobile Application Asuransi Sinar Mas Online

asuransi
sinarmas

asuransi
sinarmas



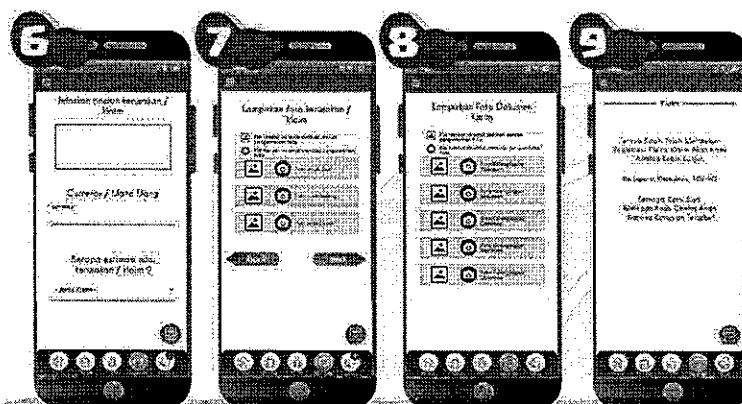
Pilih menu laporan klaim di halaman utama (home).

Pilih jenis asuransi yang akan diajukan pelaporan klaimnya. Jika data polis belum terdistribusi dapat ditambahkan dengan klik pilihan «Tambah Polis»

Pilih jenis 'Polis' lainnya untuk menambahkan polis asuransi Kebakaran dan masukkan nomor polis Anda

Lengkapi data kapan terjadinya dan penyebab kerusakan / klaim

Lengkapi data lokasi objek pertanggungan, kronologi kerusakan / klaim



Lengkapi data rincian dan nilai estimasi kerusakan / klaim

Lengkapi data foto kerusakan / klaim

Lengkapi data dokumen klaim

Bila berhasil akan muncul nomor laporan klaim

Manfaatkan Kemudahan Layanan Ini
JANGAN CEMAS ADA SIMAS

PT Asuransi Sinar Mas
Plaza Simas, Jl. KH. Fachrudin No.18, Jakarta 10250
24 Hour Customer Care (021) 235 67 888 / 5050 7888
info@sinarmas.co.id | www.sinarmas.co.id | WhatsApp 0891 1070 988